

CURRENT CONDITIONS REPORTS ON CONSERVATION RESTRICTIONS

HELD BY BTA/BOLT Inc.

1. Written description of property ✓
2. Date CR recorded ✓
3. Map ✓
4. Photographs/ GPS ✓
- ⑤ Dated CR Monitoring Report filled out ✓
6. Signature of owner, dated ✓
7. Did original Grantor receive a tax deduction? *no - Not applicable*
8. *openspace context plan - 3*
- ⑨ *2007 monitoring report* ✓

Where Baseline Documentation is unavailable

Approved 2/14/08 BY BTA/BOLT, Inc. Board

BTA/BOLT, Inc. intends to submit "current conditions" reports on CRs that we hold where we lack baseline Documentation by July 1, 2008

Achenbach  
 Boxford Town Forest ✓  
 Cedar Pond Society  
 Coolidge 100 Acres  
 Price property

BTA/BOLT, Inc. PROPERTY INSPECTION REPORT

1. Property name: Townsend Farms

2. Location: 11 acres of land (T. Townsend Farms) (Boxford, MA)

**Townsend Farms** 11/21/2007

These 11 acres or so, are a wonderful example of wetlands, comprised of a tributary of Fish Brook, which is a tributary of the Ipswich River, adjoining freshwater wetlands and forested uplands representing a diversity of plant and wildlife habitat, including that of the endangered Blanding's Turtle.

BTA/BOLT, Inc. granted a Conservation Restriction to the Boxford Conservation Commission, recorded on November 30, 2007.

3. Date property was acquired: 08/19/04 Purchase of land from the landowner

4. Description of land: The property is a 11-acre parcel, mostly wetlands, with a small portion of forested uplands. The property is located on the south side of Fish Brook, which is a tributary of the Ipswich River.

5. Purpose of property: Conservation, wetlands.

## **BTA/BOLT Inc. PROPERTY INSPECTION REPORT**

1. Property name: Townsend Farms

2. Location [street address]: Townsend Farm Road, Boxford, MA

3. Date of inspection: July 21, 2007

4. Size in acres: 11.77 acres

5. Does the property have a Conservation Restriction on it, if so, who holds it? Yes, held by the Boxford Conservation Commission

6. Owner name and address: BTA/BOLT, Inc. P.O. Box 95, Boxford, MA 01921

7. Date property was acquired: 03/23/04 Purchase or donation? Donation

8. Describe the details of your inspection [where you walked, etc.]: Basically, we walked around the accessible perimeter of the property, and looked inside at the pond, stream and wetlands

9. Present use of property: Conserved wetlands

10. Note any possible violations or encroachments: None observed

Monitor comments/Intended Follow-up

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11. Describe any rare or unusual plant or animal life or sign thereof: None observed

12. Additional remarks [particularly as to the present condition of the property]: We would like to remove the small float visible in photo # 14

13. Names of monitoring team members: Mary Ellen Iorio and Nick Shrewsbury

14. Time spent on property: approximately an hour

15. Inspection team leader:

Mary Ellen Iorio  
[printed name]

Mary Ellen Iorio via email  
[signature]



# BTA/BOLT LAND AND CONSERVATION

## RESTRICTION MONITORING FORM

Nature Preserve: *Townsend Farms Parcel A*

Date: *5/11/04*

a) Visitor Use:

No. of individuals (make estimate if possible): *5-10 per week*

Name and Size of Organized Groups:

b) Did you observe any hazards or potential liability factors? *NO* Please explain.

c) Are the signs and boundary markers intact? If not, what maintenance is needed? *Yes*

d) Trail Condition: Good Average *✓* Poor *Question whether to install trail*  
Problem areas needing attention:

e) Fauna noted:

Flora noted:

f) Are any of the following items a problem now, or do you see them as a problem in the future?

- |                                               |                                                       |
|-----------------------------------------------|-------------------------------------------------------|
| <input checked="" type="checkbox"/> hunting   | <input checked="" type="checkbox"/> ORV's             |
| <input type="checkbox"/> road conditions      | <input type="checkbox"/> litter                       |
| <input checked="" type="checkbox"/> vandalism | <input checked="" type="checkbox"/> over use (youth)  |
| <input type="checkbox"/> erosion              | <input checked="" type="checkbox"/> fire (youth)      |
| <input type="checkbox"/> flooding             | <input checked="" type="checkbox"/> pollution (youth) |
| <input type="checkbox"/> siltation            | <input type="checkbox"/> disease/pest infestation     |
| <input type="checkbox"/> access               | <input type="checkbox"/> boundaries                   |
| <input type="checkbox"/> timber theft         | <input type="checkbox"/> community relations          |
- Potential of the following being a problem w/ close proximity to neighbor's land*

Explain any of the above that need action beyond the scope of your responsibilities:

g) Note any particularly interesting observations:

h) Future management considerations:

Are there any projects that should be considered in the future to improve public access, education/recreation opportunities, management capability, etc.?            Please explain.

i) This report was determined by observation of:

- |                                     |                       |
|-------------------------------------|-----------------------|
| <input checked="" type="checkbox"/> | part of boundary area |
| <input type="checkbox"/>            | entire boundary       |
| <input checked="" type="checkbox"/> | part of interior      |
| <input type="checkbox"/>            | entire preserve       |

Submitted by:

*R. Ford*

# BTA/BOLT LAND AND CR ACQUISITION

## BASELINE DATA FORM

Completed by: *R. Ford*

Date: *5/11/04*

1. PROPERTY NAME: *Townsend Farms Parcel A, Townsend Farms Rd*  
Town: *Boxford* County: *Essex*  
Acres: *11.7* Determined by ☒ Survey  
☒ Deed  
☒ Tax Map  
Landowner(s): *Townsend Farms Cemetery & Assn.* *Julia Matthews*  
Owner's Address: *51 Townsend Farms Rd* Phone: *887-5968*  
Owner's Agent: *Andrew Evans, Esq.* Phone:  
Agent's Address: *Topshfield, MA*

Other Contacts (Resource Consultants, etc.):

Deed: Book # *22544*

Page # *581*

- ☒ Well-defined description  
☐ Title Work Necessary  
☐ Known encumbrances:

2. DONOR OBJECTIVES: *Permanent Preservation*

3. ATTACHMENTS: ☐ Topo Map  
☐ Type Map (Soils Map)  
☒ Photographs

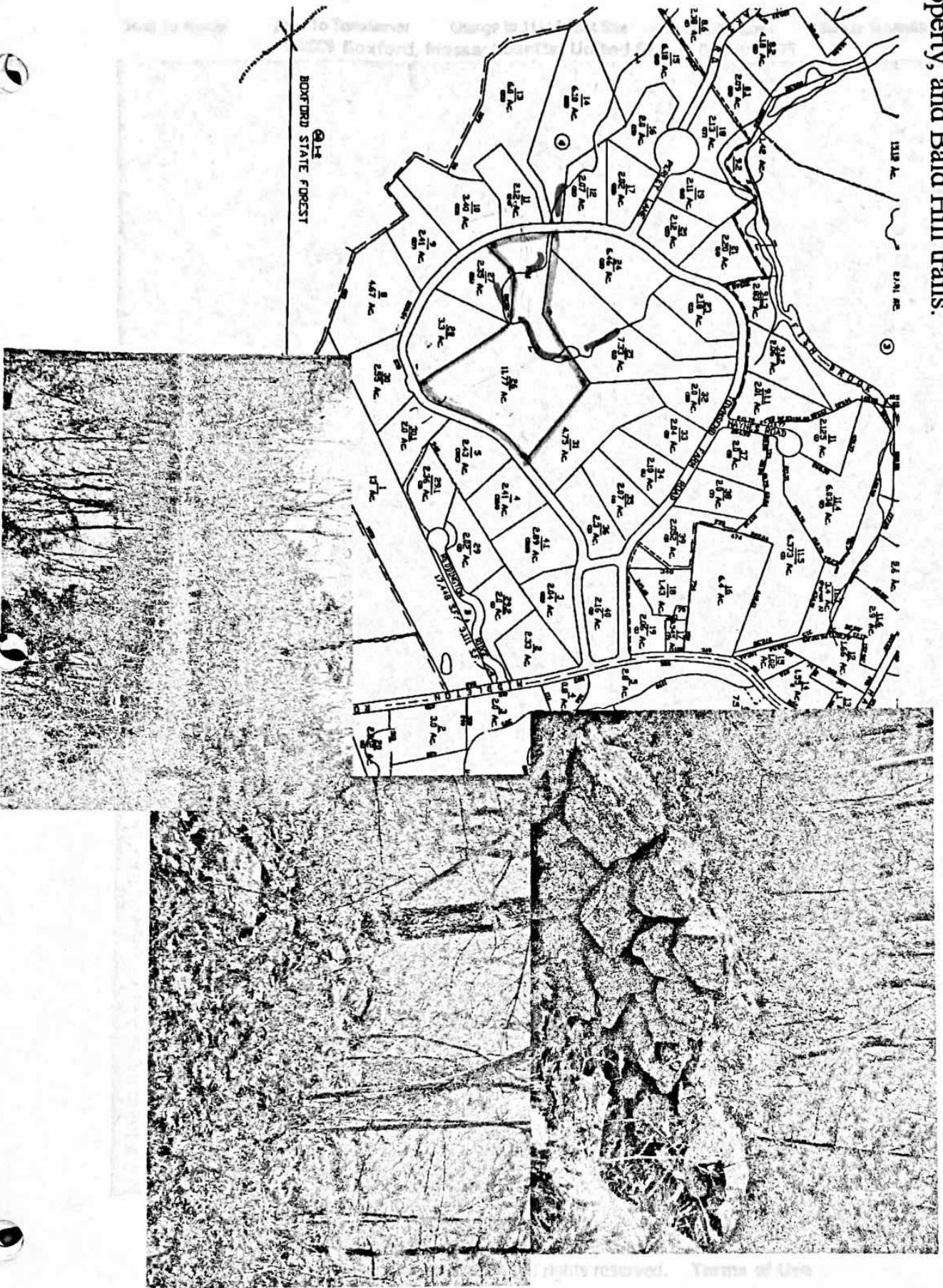
☒ Survey Map  
☐ Other Maps  
☒ Other

4. GENERAL PROPERTY INFORMATION

- *See flyer inside*
- *Need to convey CR to*  
*Boxford Conserv*

- *Assessor's map*  
- *AIS map*

**Townsend Farm Parcel A**, 11.77 acres owned by The Townsend Farm Greenbelt Association. Contains tributary to Fish Brook, several old stone walls, mixed evergreen and deciduous forest and wetlands, short walking path, fire pond used as a fishing hole, one potential building lot, and proximity to Boxford State Forest, Price Property, and Bald Hill trails.





Send To Printer

Back To TerraServer

Change to 11x17 Print Size

Show Grid Lines

Change to Landscape

USGS Boxford, Massachusetts, United States 03 Apr 1995

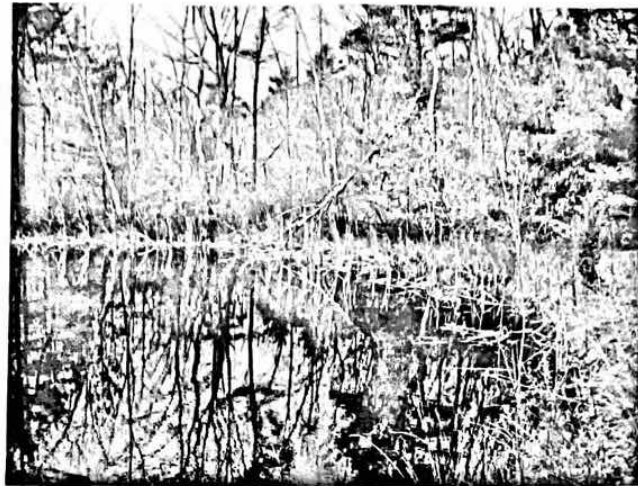


0 100M

0 100yd

Image courtesy of the U.S. Geological Survey  
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# PRELIMINARY PHOTOGRAPHIC INVENTORY



*Looking Northwesterly from Townsend Farms Road*



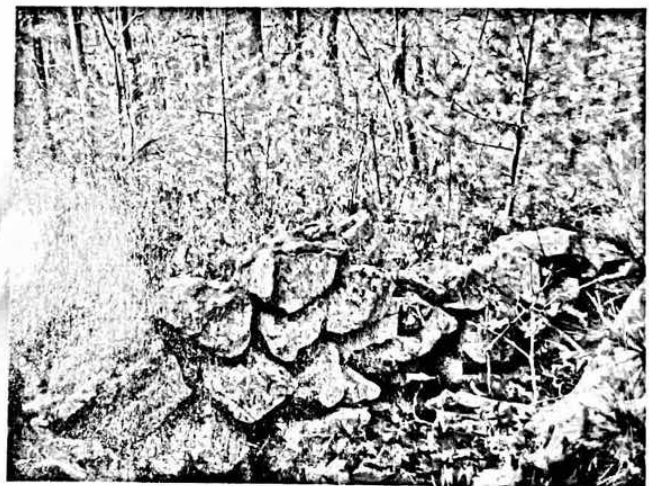
*Stonewall at Northeasterly corner of lot*



*Looking North toward Brook in center of lot*



*Stonewall along Northerly lot line*



*Stonewall along Easterly lot line*



A. The Property provides significant scenic, aesthetic, scientific, educational, recreational, and historic value in its present state as a natural area and open space which has not been subjected to development incompatible with said uses;

B. The Property contains a stream that is a tributary of Fish Brook, an important watershed, which is itself a tributary of the Ipswich River, adjoining freshwater wetlands and forested upland representing a diversity of plant and wildlife habitat, including habitat for the endangered Blanding's Turtle;

C. The Property comprises and protects part of the Fish Brook and Ipswich River watershed, one of the most stressed watersheds in the nation;

D. The Grantor and Grantee recognize the uniqueness of the Property as a distinctive Massachusetts landscape embodying the special character of the region in which the Property is located and have the common purpose of conserving the natural values of the Property for this generation and future generations; and

E. The Property held under permanent protection of a conservation restriction is consistent with the goals and objectives set forth in the Town of Boxford 2001 Open Space and Recreation Plan.

THEREFORE, in order to preserve the Property in perpetuity in its present natural, scenic, and open condition, the Grantor conveys to the Grantee a perpetual Conservation Restriction within the meaning of Chapter 184, Section 31 et. seq. of the General Laws of Massachusetts, as amended.

The terms of this Conservation Restriction are as follows:

## II. PROHIBITED AND PERMITTED ACTIVITIES AND USES

A. Prohibited Activities and Uses. Except as otherwise herein provided, the Grantor shall neither perform nor permit others to perform any of the following acts or uses in, on, over or under the Property:

1. Construction or placing of any building, structure, facility or improvement on, over or under the Property, including but not limited to tennis courts, landing strips or pads, mobile homes, swimming pools, septic systems, roads, signs, fences, billboards or other advertising display, utilities, conduits, poles, antennas, towers, monopoles, windmills, solar panels, docks, wharfs, or other temporary or permanent structures, facilities, or improvements of any kind on, over or under the ground unless otherwise permitted in Paragraph B.2 below;

2. Dumping or placing of soil, grass clippings, compost, yard debris or other substances on the ground as landfill, or dumping or placing of vehicle bodies or parts, junk, trash, refuse, solid or chemical waste or unsightly or offensive materials, or the installation of underground storage tanks;

3. Cutting, removal, harvesting or destruction of trees, grasses, shrubs or other vegetation unless otherwise permitted in Paragraph B below;

3. Mining, excavating, dredging or removal from the Property of loam, peat, sand, gravel, soil, rock or other mineral substances or natural deposits except as necessary for proper drainage or soil conservation and then only in a manner which does not impair the purposes of this Conservation Restriction after consultation with and approval by the Grantee;

4. Any commercial use or activity, unless the activity is otherwise permitted in Paragraph B below; any residential or industrial use or activity; and any municipal use not related to the purposes of this Conservation Restriction;

5. Use of motorized vehicles of any nature or kind, including but not limited to cars, trucks, motorcycles, all-terrain vehicles and snowmobiles, except such as may be reasonably required by police, firemen or other governmental agents in carrying out their lawful duties or for reasonable access by persons with disabilities, and except for cars, trucks and farm vehicles used for purposes permitted by this Conservation Restriction as provided in Paragraph B below;

6. The use, landing, or storage of aircraft, helicopters, or similar machines or devices, except as reasonably required by police, firefighters or other emergency personnel or government agents in carrying out their lawful duties;
7. Use of the Property in any manner or for any purpose except for agriculture, forestry or outdoor recreational purposes or other purposes that permit the Property to remain predominantly in its natural condition;
8. Activities detrimental to drainage, flood control, water or soil conservation, water quality, or erosion control or the removal, disturbance or other activities detrimental to wildlife or wildlife habitat;
9. Conveyance of a part or portion of the Property alone, or division or subdivision of the Property (as compared to conveyance of the Property in its entirety which shall be permitted, subject to the provisions herein), without the prior written approval of the Grantee, whose approval shall not be unreasonably withheld;
10. The use of the Property for camping, hunting, trapping or discharge of firearms;
11. The use of the Property for (a) transferring development rights to any property, whether or not the receiving land is adjacent to the Property; (b) calculating permissible lot yield of any other land; and (c) use in any calculations involving development of any other land, whether or not adjacent to the Property, in any manner whatsoever (except in the event that adjacent land is to be used for a municipal water supply resource);
12. Commercial recreational activities. In no event shall the property be used for commercial recreation activities in compliance with Section 2031(c)(8)(B) of the Internal Revenue Code or any successor statute or regulation; or
13. Any other use of the Property or activity which is inconsistent with the purposes of this Conservation Restriction or which would materially impair other significant conservation values unless such use or activity is necessary for the protection of the conservation values that are subject to this Conservation Restriction.



**B. Reserved Rights: Exceptions to Prohibited Activities and Uses.**  
Notwithstanding the provisions of Paragraph A, the Grantor reserves the right to conduct or permit the following activities on the Property provided that such uses and activities do not materially impair the purposes of this Conservation Restriction or other significant conservation values:

1. Within forested areas, in accordance with accepted silvicultural practices and generally accepted forest management practices, the selective removal, pruning and cutting of trees, shrubs and other vegetation to prevent, control, or remove hazards, disease or insect damage, or fire, all in accordance with a cutting plan approved by the Grantee;
2. The erection and maintenance of a minimal number of signs with respect to (a) the location of boundary lines, (b) hunting and trespassing, (c) identifying the Grantor as the owner of the Property, (d) identifying the Grantee as the holder of this Conservation Restriction, (e) regulating the use of the Property by visitors, and (f) educating the public about the conservation values protected;
3. The right, but not the obligation, to conduct ecological restoration activities to maintain and restore plant and wildlife habitat. Prior to commencing any restoration or maintenance activities, restoration plans shall be developed by the Grantor after consultation with the Grantee and with the Grantee's approval, whose approval shall not be unreasonably withheld;
4. Passive outdoor recreational activities such as walking, running, horseback riding, fishing, bicycling, snowshoeing and cross-country skiing;
5. The right, but not the obligation, to selective removal or pruning of brush and trees along the roadside and stonewall abutting the Property in accordance with a plan approved by the Grantee and subject to the Scenic Roads Act, Shade Tree Act, and any other applicable Boxford or state regulations;

6. Activities designed to enhance the ecological or natural historical value of the Property, including wildlife habitat improvement after consultation with the Grantee and with the Grantee's approval, whose approval shall not be unreasonably withheld;

7. Activities designed to control exotic plant species on the Property in accordance with a plan approved by the Grantee, whose approval shall not be unreasonably withheld;

8. Hiking, wildlife observation and other passive noncommercial outdoor recreational and educational activities consistent with the purposes of this Conservation Restriction;

9. Construction and maintenance of trails for passive recreational activities listed in Paragraph 4 above;

10. Access and use of the Property by the public shall be permitted in accordance with Section IV.B; or

11. Such other activities requested by the Grantor and expressly approved by the Grantee as are consistent with the purposes of this Conservation Restriction.

The exercise of any right reserved by the Grantor under this Paragraph B shall be in compliance with the following: (a) then-current building, zoning, planning, and conservation regulations, bylaws or ordinances applicable to the Property, (b) any special permits or variances pertaining to the Property, (c) the Wetlands Protection Act (General Laws Chapter 131, Section 40), and (d) all other applicable federal, state and local laws and regulations. The inclusion of any reserved right in Paragraph B of Section II requiring a permit from a public agency merely means that the Grantor may have a right to request a permit, it does not mean that the Grantee takes any position on whether such permit should be issued.

C. Unspecified Activities and Uses are Prohibited. All acts and uses not expressly permitted in Paragraph B of Section II are prohibited unless otherwise authorized by the Grantee pursuant to Paragraph D below.

**D. Notice to and Approval by Grantee.** Whenever notice to or approval by the Grantee is required under the provisions of Paragraphs A, B or C of Section II, or any other provision or condition herein, the Grantor shall notify the Grantee in writing not less than sixty (60) days prior to the date the Grantor intends to undertake the activity in question. The notice shall describe the nature, scope, design, location, timetable and any other material aspect of the proposed activity in sufficient detail to permit the Grantee to make an informed judgment as to its consistency with the purposes of this Conservation Restriction. Where the Grantee's approval is required by the terms of this Conservation Restriction, the Grantee shall grant or withhold its approval in writing within thirty (30) days of receipt of the Grantor's written request therefore. Grantee's approval may be withheld upon a determination by the Grantee at its sole discretion that the action as proposed would be inconsistent with the purposes of this Conservation Restriction. Failure by the Grantee to respond within that time period will be deemed an approval of the activity.

### **III. ACCESS**

**A. Access by the Grantee.** The Grantee through its duly designated officers, directors, members, employees, representatives or agents shall have the right to enter the Property following reasonable notice and at reasonable times and in a reasonable manner for the purpose of inspecting the Property and determining compliance with the terms of this Conservation Restriction.

**B. Access by the Public.** The Grantor recognizes that certain portions of the Property are presently used by the general public to pass and repass by foot, horseback, snowshoe and cross country ski for purposes of quiet outdoor recreational and educational activities. The Grantor and its successors and assigns shall permit the continuance of such activities provided (1) that any such activity shall be limited to daylight hours only (unless otherwise permitted by BTA/BOLT); (2) that no motor vehicles of any kind other than those for reasonable access by persons with disabilities shall be permitted; (3) that no camping, hunting, trapping or discharge of firearms shall be conducted; (4) that no dumping, waste disposal, or littering of any kind be allowed; and (5) that no activity of a commercial nature be allowed. The Grantor hereby reserves

the right to alter the locations of established trails, after consultation with the Grantee and with the Grantee's approval, provided that as so relocated, neither the conservation values of this Conservation Restriction nor access to and passage through the Property is impaired.

#### **IV. LEGAL RIGHTS AND REMEDIES OF THE GRANTEE**

A. **Legal and Injunctive Relief.** The rights hereby granted include the right to enforce this conservation restriction by appropriate legal proceedings and to obtain injunctive and other equitable relief against any violations, including without limitation relief requiring restoration of the Property to its condition prior to the time of the injury complained (it being agreed that the Grantee may have no adequate remedy at law), and shall be in addition to, and not in limitation of, any other rights and remedies available to the Grantee.

B. **Actions to Prevent or Remedy Violations.** The Grantee shall have the right to take appropriate actions to prevent, abate, or remedy violations of this Conservation Restriction.

C. **Reimbursement of Costs of Enforcement.** The Grantor and the successors and assigns of the Grantor covenant and agree, to the extent permitted by law, to reimburse the Grantee for all reasonable costs and expenses (including without limitation reasonable counsel fees) incurred in enforcing this Conservation Restriction or in taking reasonable measures to remedy or abate any violation thereof, provided that a violation of this Conservation Restriction is acknowledged by the Grantor or determined by a court of competent jurisdiction to have occurred.

D. **Grantee's Disclaimer of Liability.** By its acceptance, the Grantee does not undertake any liability or obligation relating to the condition of the Property.

E. **Non-Waiver by Grantee.** Enforcement of the terms of this Conservation Restriction shall be at the discretion of the Grantee, and any forbearance by the Grantee to exercise its rights under this Conservation Restriction shall not be deemed or construed to be a waiver.



F. Acts Beyond Grantor's Control. Nothing contained in this Conservation Restriction shall be construed to entitle Grantee to bring any action against Grantor for any injury to or change in the Property resulting from causes beyond the Grantor's control, including but not limited to, fire, flood, storm and earth movement, public recreation, and acts caused by trespass on the Property not contributed to by acts or omissions of the Grantor, of or from any prudent action taken by the Grantor under emergency conditions to prevent, abate, or mitigate significant injury to the Property resulting from such causes.

#### V. ASSIGNMENT BY GRANTEE

The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee and its successors and assigns shall have the right to assign all or a portion of its right, title and interest hereunder to a "Qualified Organization" as defined in Section 170 (h) (3) of the Internal Revenue Code provided that such assignee shall also be an eligible donee of a conservation restriction as set forth in Chapter 184, Section 32 of the General Laws of Massachusetts, and provided further that, as a condition of such assignment, the assignee is required to hold this Conservation Restriction and enforce its terms for conservation purposes and, to the extent required by law, comply with the provisions of Article 97 of the Amendments to the Massachusetts Constitution. The Grantee shall notify the Grantor in writing at least thirty (30) days in advance of any such assignment, but the failure of the Grantee to do so shall not impair the validity of this Conservation Restriction or limit its enforceability in any way.

#### VI. SUBSEQUENT TRANSFERS

A. Reference to Conservation Restriction in Future Deeds. The Grantor agrees to incorporate the terms of this Conservation Restriction by reference in any deed or other legal instrument by which they divest themselves of any interest in all or a portion of the Property, including without limitation, any leasehold interest or option.

B. Representations of the Grantee. The Grantee represents that it is a not for profit corporation, that it has a perpetual existence, that it is organized and operated for

the purpose of preserving and conserving natural resources, natural habitats, environmentally sensitive areas and for other charitable, scientific and educational purposes, that it has both the necessary funds and commitment to hold this Conservation Restriction exclusively for conservation purposes in perpetuity and to enforce its terms, and that it is a "Qualified Organization" as that term is defined in Section 170 (h) (3) of the Internal Revenue Code of 1986, as amended.

C. Required Notifications of Transfers. The Grantor shall notify the Grantee in writing at least sixty (60) days before conveying the Property, or any part thereof or interest therein (including a leasehold interest or option). The Grantee shall notify the Grantor in writing at least thirty (30) days before it assigns this Conservation Restriction. Any failure by Grantor or Grantee to provide notification as provided for herein shall not invalidate or extinguish this Conservation Restriction or limit its enforceability in any way.

## VII. EXTINGUISHMENT

A. Termination or Extinguishment. This Conservation Restriction can only be terminated or extinguished, whether in whole or in part, by judicial proceedings in a court of competent jurisdiction, based on circumstances arising in the future that render the purposes of this Conservation Restriction impossible to accomplish, or by two-thirds vote of the General Court pursuant to statutory process.

B. Grantee's Receipt of Property Rights. The Grantor and Grantee agree that if this Conservation Restriction should ever be terminated or extinguished, the proceeds, if any, shall first be distributed to the Grantor, or their successors or assigns, for the purchase of other land in Boxford for similar conservation and recreational purposes as stated herein and Grantor shall convey to Grantee a conservation restriction on such land similar in form and purpose to the conservation values stated herein. If, within 30 days of such termination or extinguishment, no other similar land is available for purchase by Grantor, then the Grantee, on a subsequent sale, exchange or involuntary conversion of the Property, shall be entitled to a portion of the proceeds equal to such proportionate value described in Paragraph C below, subject however, to any applicable law which expressly provides for a different disposition of proceeds.

therein, by the Grantor, its successors and assigns and its duly designated officers, directors, members, employees or agents as holders of this Conservation Restriction.

C. Value of Grantee's Property Right. The Grantor and Grantee agree that the donation of this Conservation Restriction gives rise, for purposes of this Paragraph, to a property right, immediately vested in the Grantee, with a fair market value that is at least equal to the proportionate value that this Conservation Restriction, determined at the time of the gift, bears to the value of the unrestricted Premises at that time and represents all land development rights associated with the Property. Such proportionate value of the Grantee's property right shall remain constant.

D. Cooperation Regarding Public Auction. Whenever all or any part of the Property or any interest therein is taken by public authority under power of eminent domain, or if all or any part of this Conservation Restriction is otherwise extinguished by act of public authority then the Grantor and the Grantee shall cooperate in recovering the full value of all direct and consequential damages resulting from such action. All related expenses incurred by the Grantor and the Grantee shall first be paid out of any recovered proceeds, and the remaining proceeds shall be distributed to the Grantor for the purchase of similar conservation land as provided in Paragraph B and in the event that no similar conservation land is available for purchase, then the remaining proceeds shall be distributed between the Grantor and the Grantee in shares equal to such proportionate value as described in Paragraph C above.

E. Continuing Trust after Disposition of Conservation Restriction. The Grantee shall use its share of the proceeds in a manner consistent with the conservation purpose set forth herein.

#### VIII. BINDING EFFECT; INTERPRETATION

A. Running of the Benefit. The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee shall have the right to assign its interests herein to the extent and in the manner provided in Section VI.

B. Running of the Burden. The burdens of this Conservation Restriction shall be deemed to run with the Property, shall be enforceable in perpetuity against the Grantor, the Grantor's successors in title to the Property, and any person holding any interest

herein, by the Grantor, its successors and assigns and its duly designated officers, directors, members, employees or agents as holders of this Conservation Restriction.

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therein, by the Grantee, its successors and assigns and its duly designated officers, directors, members, employees or agents as holders of this Conservation Restriction.

C. Termination of Rights and Obligations. Notwithstanding anything to the contrary contained herein, the rights and obligations under this Conservation Restriction of any party holding any interest in the Property shall terminate upon transfer of that party's interest in the Property. Liability for acts or omissions occurring prior to any transfer and liability for any transfer in violation of this Conservation Restriction shall survive the transfer.

D. Prior Encumbrances. This Conservation Restriction shall be in addition to and not in substitution of any other restrictions or easements of record affecting the Property.

E. Pre-Existing Rights of the Public. The approval of this Conservation Restriction by any municipal or state authority is not to be construed as representing the existence or nonexistence of any pre-existing rights of the public, if any, in and to the Property. Any pre-existing rights of the public are not affected by the granting of this Conservation Restriction.

F. Execution of Instruments. The Grantee is authorized to record or file any notices or instruments appropriate to assuring the perpetual enforceability of this Conservation Restriction. The Grantor and its successors and assigns agree to execute any such instrument its review and approval.

G. Effective Date. The Grantor and the Grantee intend that the restrictions arising hereunder take effect when all the requisite signatures pursuant to Section 32 of Chapter 184 of the General Laws of Massachusetts have been obtained and this document has been recorded in a timely manner in the appropriate Essex County Registry of Deeds.

H. Controlling Law. The interpretation of this Conservation Restriction shall be governed by the laws of the Commonwealth of Massachusetts.

I. Liberal Construction; Severability. This Conservation Restriction shall be liberally construed in favor of the grant to effect its conservation purposes and the

policies and purposes of M.G.L. Chapter 184, Sections 31-33. If any provision of this instrument is found to be ambiguous, an interpretation consistent with the purposes of this Conservation Restriction that would render it valid shall be adopted over any interpretation that would render it invalid. If any provision or condition of this Conservation Restriction shall be declared invalid, the remaining provisions shall not be affected.

IN WITNESS WHEREOF, the said \_\_\_\_\_ have  
J. Entire Agreement. This instrument sets forth the entire agreement of the parties regarding this Conservation Restriction and supercedes all prior discussions, negotiations, understandings or agreements.

Name: Natasha Goida  
K. Non-Merger. No future assignment of Grantor's or Grantee's interest in the Property or future acquisition of any interest in the Property by Grantor or Grantee shall cause this Conservation Restriction to merge with the fee or render any terms unenforceable pursuant to the so-called Doctrine of Merger.

Name: David Ingalls  
L. Notices. Any notice, demand, request, consent, approval, or other communication that either party desires or is required to give pursuant to this Conservation Restriction is deemed delivered upon receipt and shall be in writing and delivered by hand, by facsimile or by first class mail and addressed as follows:

COMMONWEALTH OF MASSACHUSETTS  
To Grantor: BTA/BOLT  
7 Elm Street  
P.O. Box 95  
Boxford, MA 01921

To Grantee: Boxford Conservation Commission  
Boxford Town Hall  
7A Spofford Road  
Boxford, MA 01921

Ross M. Pevanakis  
Notary Public  
My Commission Expires: \_\_\_\_\_  
IX. ESTOPPEL CERTIFICATES

Upon request by the Grantor, the Grantee shall within thirty (30) days execute and deliver to the Grantor a written certificate of compliance in recordable form which certifies the Grantors' compliance with any obligation of the Grantor contained in this Conservation Restriction, and which otherwise evidences the status of this Conservation Restriction.

IN WITNESS WHEREOF, the said \_\_\_\_\_ have hereunto set their hands and seals this 22 day of October, 2006.

By: \_\_\_\_\_

Name: ~~Judy Gore~~ Natasha Grigg

Title: President

Hereunto Duly Authorized

By: \_\_\_\_\_

Name: David Ingalls

Title: Treasurer

Hereunto Duly Authorized

# COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

On this 22 day of October, 2006, before me, the undersigned notary public, personally appeared Judy Gore and David Ingalls, proved to me through satisfactory evidence of identification which was PERSONAL KNOWLEDGE to be the persons whose names are signed on the preceding document, and acknowledged to me that they signed it voluntarily for its stated purpose.

Ross M. Povenmire  
Notary Public  
My Commission Expires  
March 12, 2010

\_\_\_\_\_  
Notary Public

My commission expires:

The Town of Boxford Conservation Commission hereby accepts this Conservation Restriction and agrees to be bound by its terms.

APPROVAL BY SELECTMEN

Town of Boxford Conservation Commission

We, the undersigned Board of Selectmen of the town of Boxford, Massachusetts, hereby certify that at a meeting duly held on \_\_\_\_\_, 2007, we approved the foregoing Conservation Restriction for the preservation of the natural resources of the town of Boxford in the public interest pursuant to Massachusetts General Laws Chapter 23A, Section 32.

By: Julia Schneider Mathews  
Name: Julia Schneider Mathews  
Title: Chairman Cons. Comm.

By: [Signature]  
Name: [Name]  
Title: Member

By: P. Richards  
Name: Peter Richards  
Title: Member

By: Lana R. Sequin-Spillman  
Name: Lana R. Sequin-Spillman  
Title: Vice Chairman Cons. Comm.

By: [Signature]  
Name: BANKS CRITER JR.  
Title: MEMBER.

Hereunto duly authorized by vote dated: \_\_\_\_\_

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

On this 20<sup>th</sup> day of September 2007, before me, the undersigned notary public, personally appeared Julia Schneider Mathews and proved to me through satisfactory evidence of identification which was personal knowledge to be the persons whose names are signed on the preceding document, and acknowledged to me that they signed it voluntarily for its stated purpose.

[Signature]  
Notary Public  
My commission expires: \_\_\_\_\_

Ross M. Povenmire  
Notary Public  
My Commission Expires  
March 12, 2010



APPROVAL BY SELECTMEN

We, the undersigned Board of Selectmen of the Town of Boxford, Massachusetts, hereby certify that at a meeting duly held on Oct. 9, 2006 the Selectmen voted to approve the foregoing Conservation Restriction to the Boxford Conservation Commission for the preservation of the natural resources of said Town and being in the public interest pursuant to Massachusetts General Laws Chapter 184, Section 32.

TOWN OF BOXFORD  
BOARD OF SELECTMEN

Stephen A. Davis

Peter C. Rutini

Barbara S. Jessel

Barbara L. Beardsley

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

On this 9th day of Oct, 2006, before me, the undersigned notary public, personally appeared Stephen A. Davis, a member of the Town of Boxford Board of Selectmen, proved to me through satisfactory evidence of identification which was Personally Known to be the person whose name is signed on the preceding document, and acknowledged to me that he/she signed it voluntarily for its stated purpose as a member of the Boxford Board of Selectmen.

Patricia A. Shields  
Notary Public

My commission expires:

PATRICIA A. SHIELDS  
Notary Public  
Commonwealth of Massachusetts  
My Commission Expires  
September 27, 2013

**APPROVAL BY SECRETARY OF THE EXECUTIVE OFFICE OF ENERGY AND  
ENVIRONMENTAL AFFAIRS**

The undersigned Secretary of the Executive Office of Energy and Environmental Affairs of the Commonwealth of Massachusetts hereby certifies that the foregoing Conservation Restriction to the Boxford Trails Association/Boxford Open Land Trust, Inc. has been approved in the public interest pursuant to Massachusetts General Laws Chapter 184, Section 32.

Date: \_\_\_\_\_

Secretary of Energy and Environmental Affairs

**Ian Bowles, Secretary**

**Executive Office of Energy and  
Environmental Affairs**

I have personally appeared before me the above-named Ian A. Bowles, Secretary, Executive Office of Energy and Environmental Affairs, and proved to me through satisfactory evidence of identification, which was (personal knowledge of identity) (documentary evidence) (affirmation of identity), to be the person whose name is signed on the document and acknowledged to me that he/she signed it voluntarily as Secretary of Energy and Environmental Affairs for the Commonwealth of Massachusetts for its stated purpose.

Notary Public

My Commission expires

12/15/2011

Exhibit A  
APPROVAL BY SECRETARY OF ENERGY AND ENVIRONMENTAL AFFAIRS  
COMMONWEALTH OF MASSACHUSETTS

The undersigned, Secretary of the Executive Office of Energy and Environmental Affairs of the Commonwealth of Massachusetts, hereby certifies that the foregoing Conservation Restriction to the Boxford Trails Association/Boxford Open Land Trust, Inc. has been approved in the public interest pursuant to M.G.L. Chapter 184, Section 32

Date: 4/10, 2007



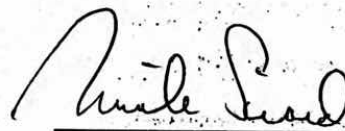
Secretary of Energy and Environmental Affairs

COMMONWEALTH OF MASSACHUSETTS

Ian A. Bowles, ss.

Nov. 8, 2007

Then personally appeared before me the above-named Ian A. Bowles, Secretary, Executive Office of Energy and Environmental Affairs, and proved to me through satisfactory evidence of identification, which was (*personal knowledge of identity*) (~~a current driver's license~~) (~~a current U.S. passport~~), to be the person whose name is signed on the document and acknowledged to me that he/she signed it voluntarily as Secretary of Energy and Environmental Affairs for the Commonwealth of Massachusetts, for its stated purpose.



Notary Public

My Commission expires: 12/15/2011

**Exhibit A**

The land subject to this Conservation Restriction (the "Premises") consists of the property shown as Parcel "A" on a subdivision plan entitled "Definitive Subdivision Plan of Townsend Farms in Boxford, Massachusetts, owner and applicant Middleton Road Boxford Realty Trust, Engineer Hancock Survey Associates, Scale 1"=200", dated December 2, 1985," (the "Plan") recorded in Essex South District Registry of Deeds Plan Book 214, Plan 79.

First Entrance,  
Townsend Farms Rd. 19

First Entrance, Townsend Farms Rd. 19

2.

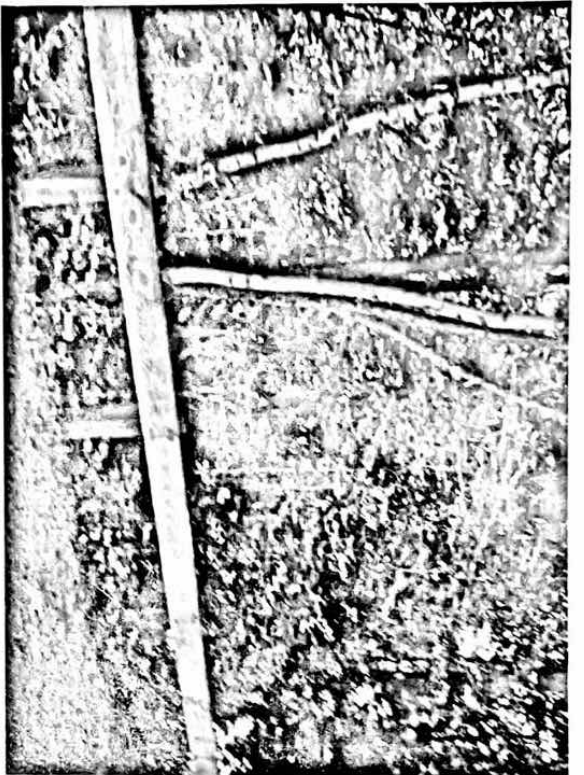
First Entrance, Townsend Farms Rd. 19

334896E 4724257N Facing N

First Entrance, Townsend Farms Rd. 19

334896E 4724257N Facing N





1.

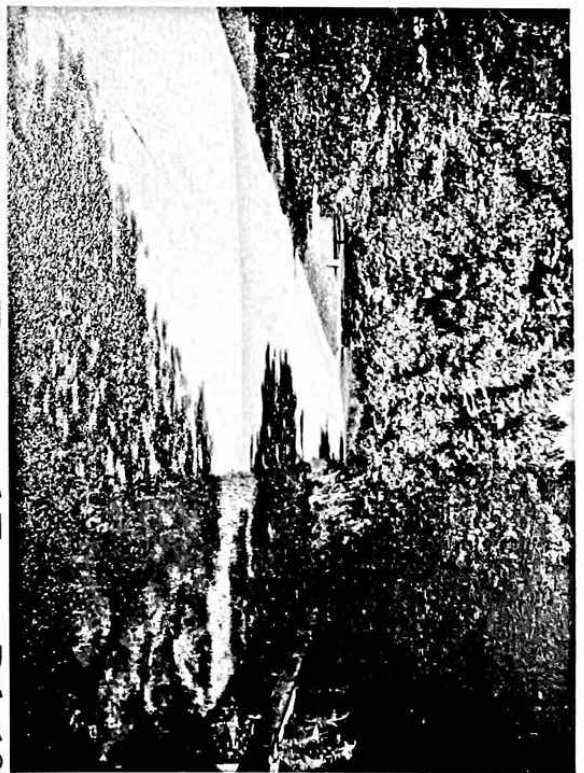
First Entrance, Townsend Farms Rd: 19  
334896E 4724267N Facing E



3.

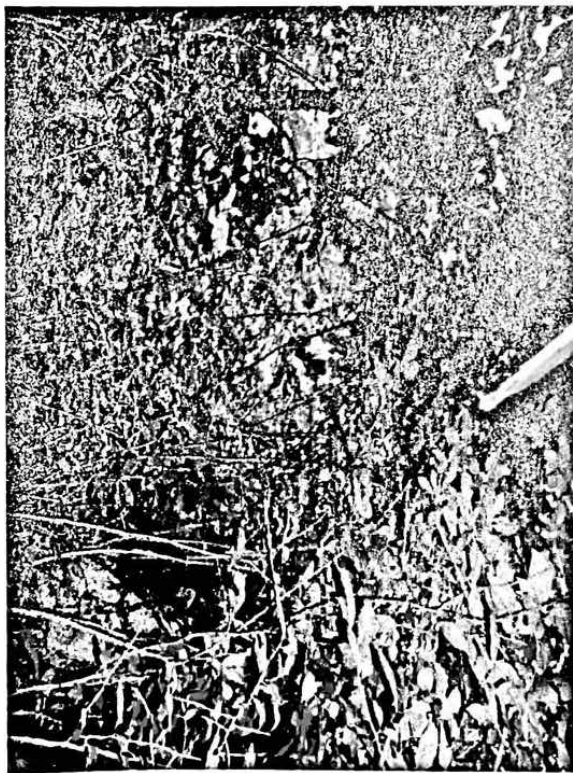
First Entrance, Townsend Farms Rd: 19  
334896E 4724267N Facing S

Monitoring, Summer 2007



2.

First Entrance, Townsend Farms Rd: 19  
334896E 4724267N Facing N



4.

First Entrance, Townsend Farms Rd: 19  
334896E 4724267N Facing N

TOWNSEND FARMS



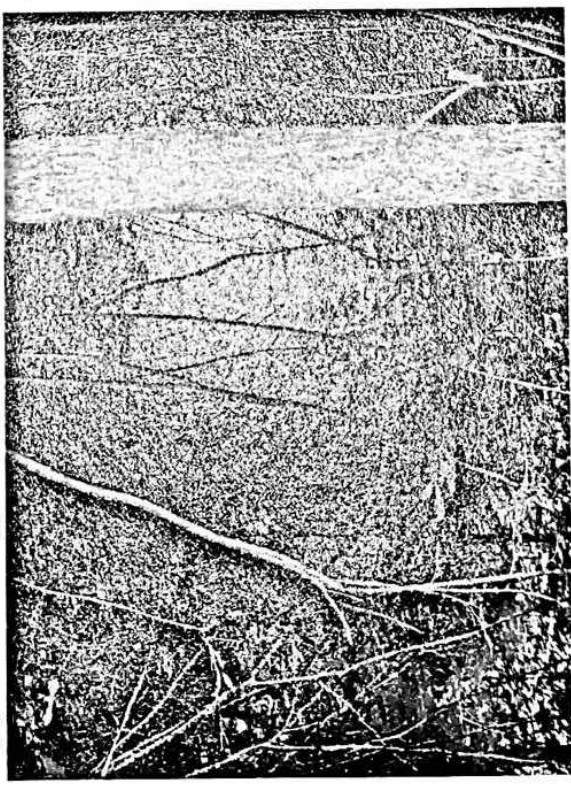
5.

First Entrance, Townsend Farms Rd: 19  
334896E 4724267N Facing NW



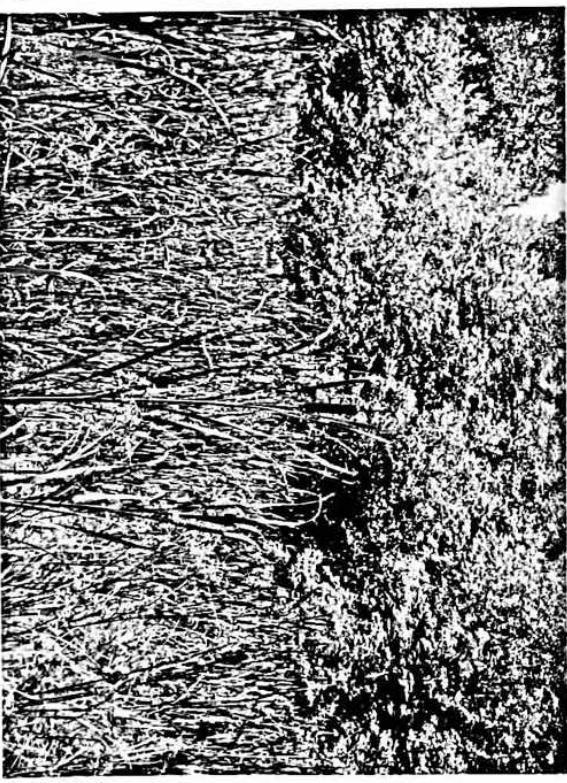
7.

Dry Stream Bed: 19 334967E 4724223N  
Facing N



6.

Dry Streambed near First Entrance: 19  
334896E 4724267N Facing E



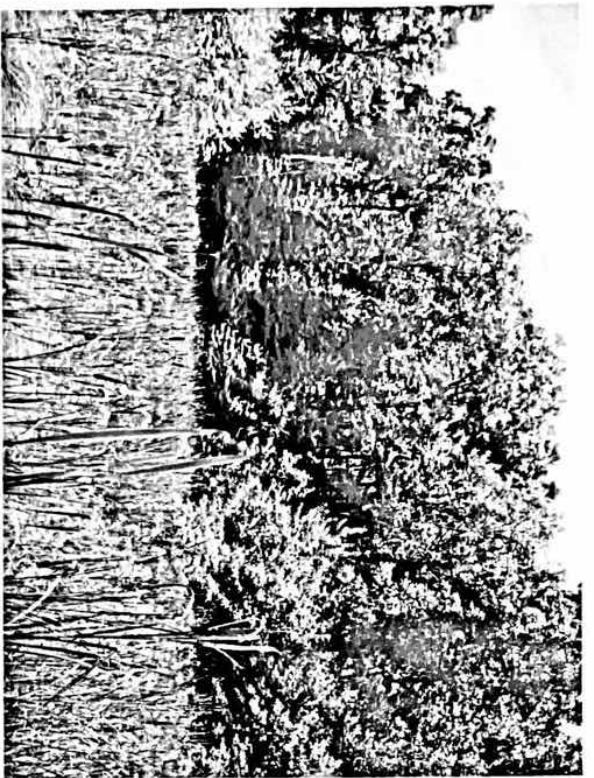
8.

Field of Cattails: 19 335150E 4724086N  
Facing SW

Summer 2007 Mon-Fri

Townsend Farms

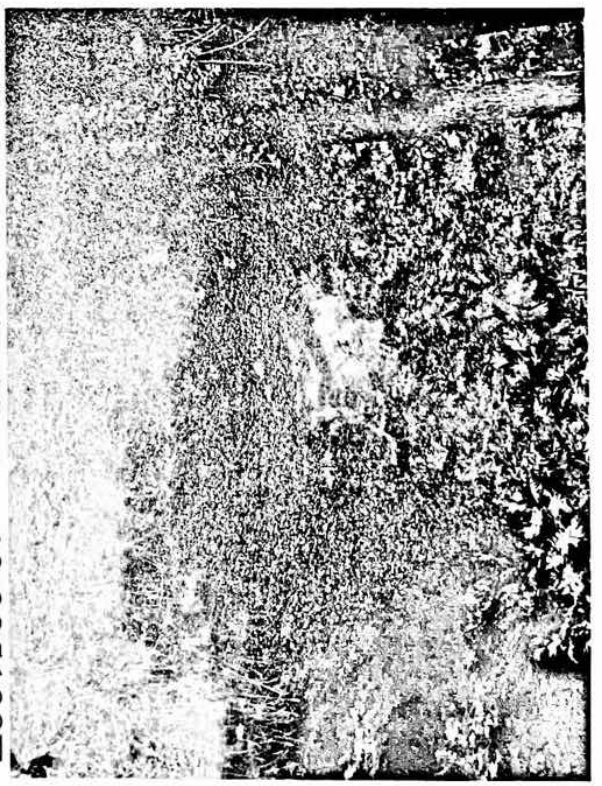




9.

Field of Cattails: 19 335150E 4724086N  
Facing SW

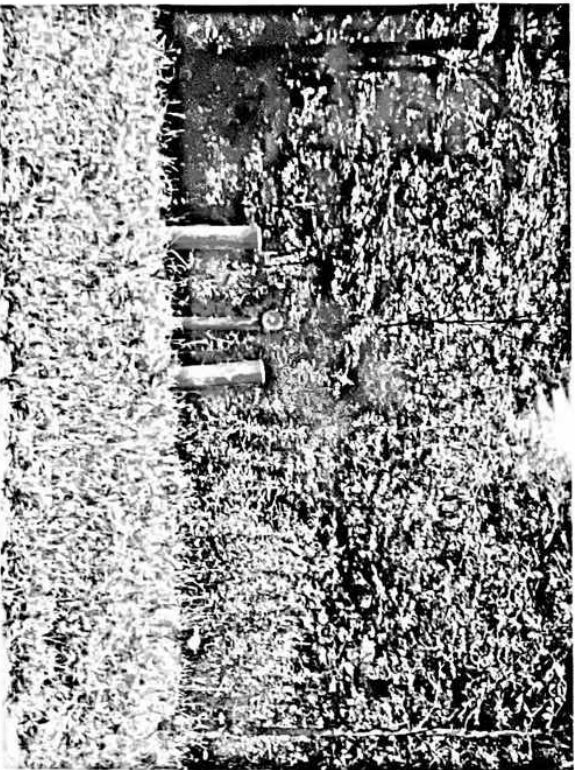
Summer 2007 monitoring



10.

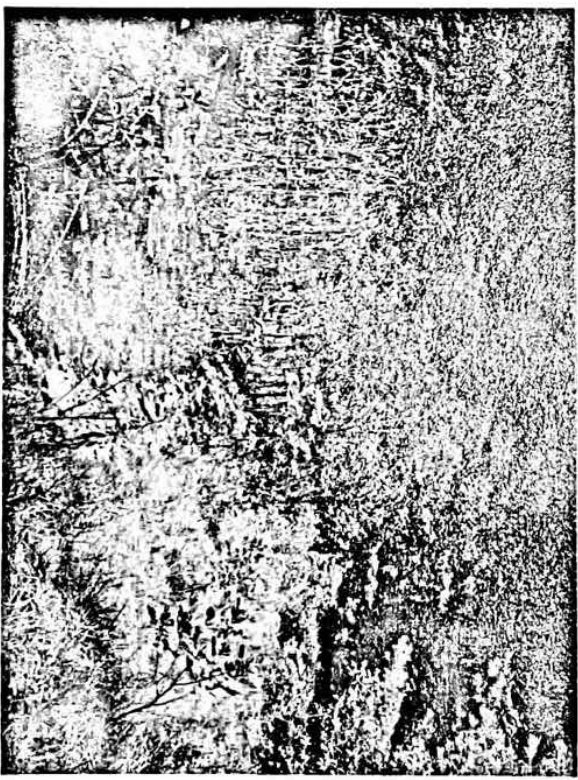
Small pond for Fire Usage: 19 335108E  
4724157N Facing N

Townsend Farms



11.

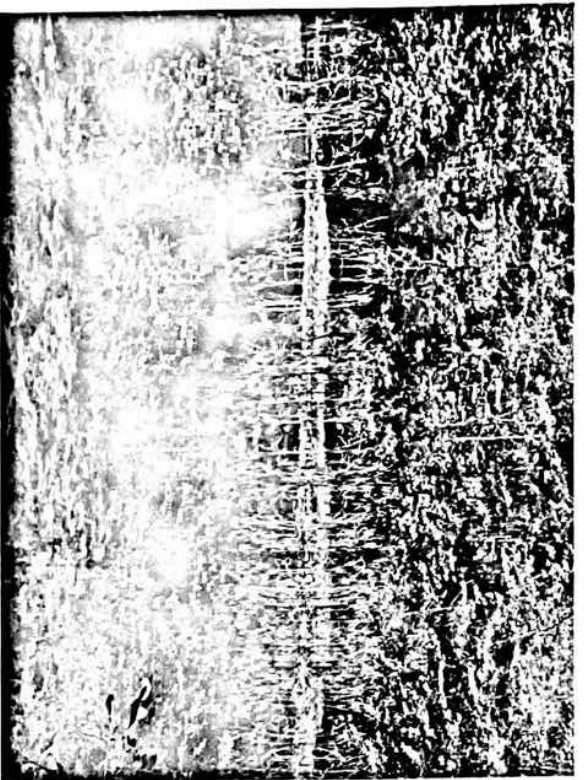
Small pond for Fire Usage: 19 335108E  
4724157N Facing N



12.

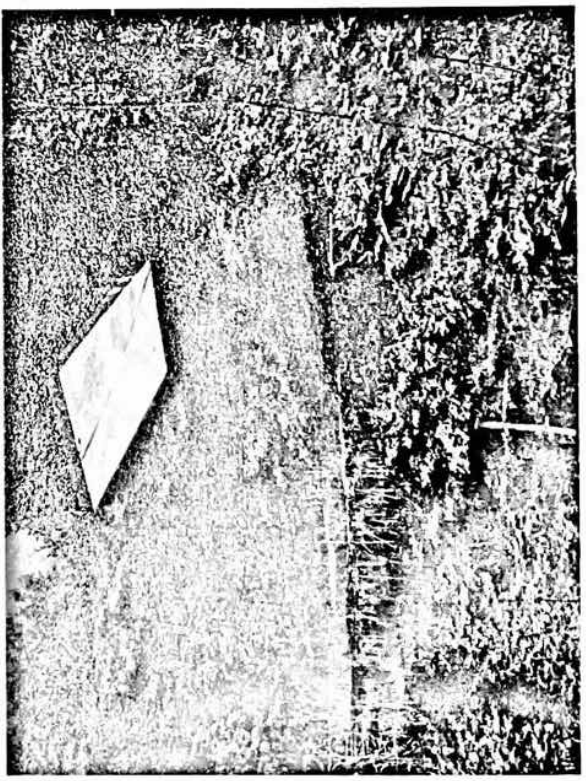
Small pond for Fire Usage: 19 335108E  
4724157N Facing N

13.



Small pond for Fire Usage: 19 335108E  
4724157N Facing N

14.



Small pond for Fire Usage: 19 335108E  
4724157N Facing N

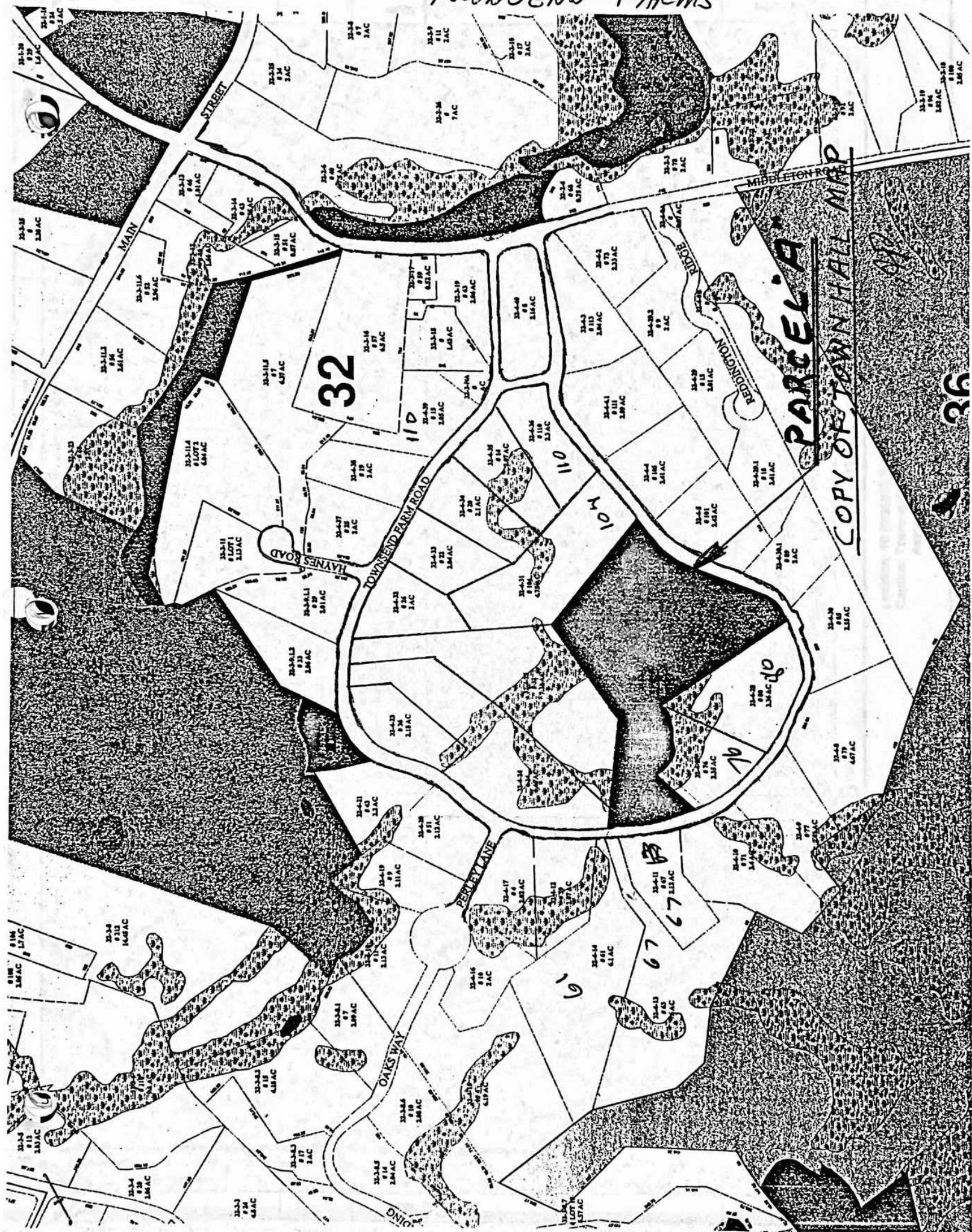
*Townsend Farms  
Monitoring 2007 Summer*

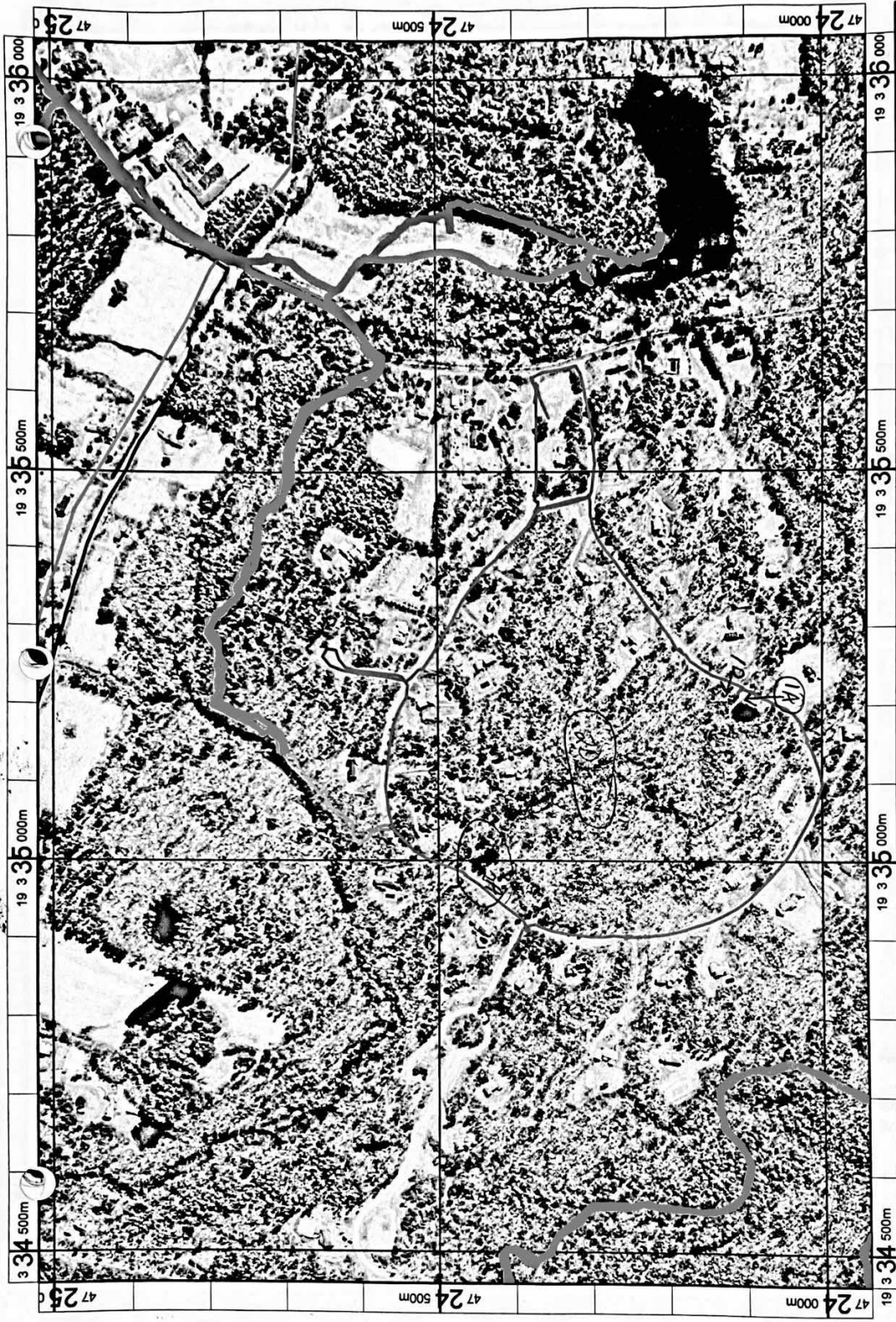






# TOWNSEND FARMS





Name: SOUTH GROVELAND SE, MA  
Date: 2/23/2007  
Scale: 1 inch equals 500 feet

Location: 19 0335253 E 4724481 N NAD 27  
Caption: Townsend Farm, Parcel "A"  
Aerial, 200%



APPENDIX B

Townsend

FARM Parcel A

EXECUTIVE OFFICE OF ENVIRONMENTAL AFFAIRS  
DIVISION OF CONSERVATION SERVICES

100 Cambridge St., 9th fl.  
Boston, MA 02114-2150  
(617) 626-1011

DATE: \_\_\_\_\_

MUNICIPALITY: \_\_\_\_\_

NUMERIC  
ASSIGNMENT: \_\_\_\_\_

CONSERVATION RESTRICTION APPLICATION FORM

Pursuant to the provisions of M.G.L. ch. 184. §32. the Secretary of Environmental Affairs is hereby requested to approve a conservation restriction as described below:

A. GENERAL INFORMATION

1. GRANTOR: Boxford Town Assoc / Boxford Open Land Trust Inc  
(Name)  
7 ELM St Po Box 95 Boxford Ma 01921  
(Address)

978-887-7031  
(Telephone No.)

JUDY GORE  
(Contact Person)

2. GRANTEE: Town of Boxford - conservation Commission  
(Name)  
Boxford Town Hall 7A Spofford Rd Boxford Ma 01921  
(Address)

978-887-6000  
(Telephone No.)

ROSS ROVENMIRE  
(Contact Person)

3. TYPE OF RESTRICTION: a. Conservation Only: ☒  
b. Joint Restriction: ☐  
Type: \_\_\_\_\_  
(agricultural, historical, watershed)

4. STATE FUNDS INVOLVED yes ☐ no ☒  
☐ CPA  
☐ Grant (type)  
☐ Other

5. PUBLIC OFFICIALS:  
State Representative(s) \_\_\_\_\_  
State Senator(s) \_\_\_\_\_  
Other involved Official(s) \_\_\_\_\_

NOTES:

If the grantee is a non-profit charitable corporation or trust, proof must be provided that it is a qualified charitable organization in accordance with M.G.L. c.180 §4(a) or (l) and the I.R.S. Code Section 501(c) (3). The Division also reserves the right to review the organization's by-laws and list of officers if warranted.

Regardless of whether the grantee is a qualified private non-profit organization or a city or town or commission, authority, or instrumentality thereof, the local conservation commission must define the reasons for preserving the property and

it should be distinguished at the outset from an agricultural preservation restriction which is approved by the Commissioner of Food and Agriculture for the Commonwealth, 251 Causeway Street, Boston, MA 02114-2150, and from an historical preservation restriction, which is approved by the Massachusetts Historical Commission 80 Boylston Street, Rm. 310, Boston, MA 02116, and from a watershed preservation restriction which is approved by the Commissioner of the Department of Conservation and Recreation, 251 Causeway St., Boston, MA 02114-2150.

It is possible for a restriction to fit into more than one category, requiring more than one approval. If a joint restriction, has the approval process been started with either the Commissioners of Food and Agriculture, DCR or the Massachusetts Historical Commission?

☐ Yes

☒ No

4. GRANTOR'S INTENT

a. Charitable contribution: ☐ Yes

☒ No

Do you intend to claim an IRS income tax deduction?

☐ Yes

☒ No

b. Required as part of municipal or state permitting process:

☐ Yes

☒ No

1. Is this restriction required by a M.G.L. C.40A §9 special permit?

☐ Yes

☒ No

(Please attach a copy of the permit(s) as an exhibit)

2. Is this restriction required by M.G.L. C.131, §40 Wetlands Order of Conditions? ☐ Yes ☒ No

(Please attach a copy of the Order of Conditions)

3. Other?

☐ Yes

☒ No (please explain)

c.. Other: Please explain (for example, sale of a C.R. to a public agency):

d. Is this a perpetual restriction? ☒ Yes ☐ No

If less than permanent, for how many years: \_\_\_\_\_

B. PUBLIC BENEFIT

1. Is the restriction for the preservation of land areas for outdoor recreation by, or the education of, the general public? ☒ Yes ☐ No

2. Is the restriction for the protection of a relatively natural habitat of fish, wildlife, or plants, or similar ecosystems? ☒ Yes ☐ No

3. Is the restriction for the preservation of open space (including farmland and forest land) where such preservation is:

a. pursuant to a clearly delineated federal, state, local governmental policy, and will yield a significant public benefit? ☒ Yes ☐ No

b. for the scenic enjoyment of the general public and will yield a significant public benefit? ☒ Yes ☐ No

4. Is the property historically significant? One that meets National Register Criteria or is within a registered historic district or contributes to the integrity of an historic building or property? ☐ Yes ☒ No

5. Other public benefit? ☒ Yes ☐ No (if yes, please explain)

NOTES:

The Secretary will find sufficient evidence of the "public interest" if the applicant can show that the restriction meets any of the tests for deductibility under the Internal Revenue Service Code Section 170(h) and the Regulations promulgated thereunder, or a private letter ruling by the Internal Revenue Service shall be deemed sufficient for establishing such deductibility, or the applicant makes an independent showing of eligibility for deductibility.

The letter ruling or documentation demonstrating eligibility for deductibility should be attached along with this application. Regardless of the intent of the grantor's gift, the Secretary's determination of public interest will be dependent upon how well the applicant demonstrates public interest. However, grantors should be advised that the Secretary reserves the right to



require modifications to the conservation restriction where in his/her opinion the retained rights adversely impact the public interest or natural resource values of the property or when the document is improperly drafted.

C. **SITE DATA**

Location:

1. Municipality Boxford Street Location Townsend Farm Rd
2. Grantor's Registry of Deeds Bk. # 22544 Page # 581
3. Assessors Map # 32-4 Lot # 26
4. New Site: ☒ Addition to existing restricted area: \_\_\_\_\_ (please specify)

Zoning: Commercial ☐ Industrial ☐ Residential ☒ (check all that apply)

Title: Does application have clear title? ☒ Yes ☐ No Assent of mortgagee(s) is required.  
If no, please explain:

Encumbrances: Is the property encumbered by any easement(s)? ☐ Yes ☐ No  
Please explain:

Geographic Information:

1. Total acres covered by restriction: 11.77  
A) Total Unrestricted Acres: \_\_\_\_\_
2. Cover: acres in  
A. Upland Forest 5.77 B. Open (field, pasture, etc.) 2  
C. Vegetated Wetland 4 D. Water 1
3. Topography: acres in  
A. Flat \_\_\_\_\_ B. Hilly \_\_\_\_\_  
C. Rolling 11.77 D. Mountains \_\_\_\_\_
4. Water front: feet on  
A. Ocean 0 B. River 0  
C. Stream \_\_\_\_\_ D. Lake 0  
Please identify waterbody Stream feeding Fish Brook

General information:

1. Are there nay improvements existing on the property, or to be permitted after execution of the C.R.? ☐ Yes ☒ No If yes, please describe in detail:

2. Is the property currently under any of the preferential real estate tax assessment programs?

☐ Yes

☒ No

If yes, which one:

c.61 ☐

c.61A ☐

c. 61B ☐

**NOTE:**

If the restriction lies in more than one community, the Site Data form must be completed for that portion of the restriction within each community.

3. If the property is under agricultural use, is the soil considered prime or of statewide agricultural significance?

☐ Yes

☒ No

(If yes, USDA Soil Conservation Service data must be provided)

4. Is the property adjacent to any public or quasi-public land or buildings? ☐ Yes ☒ No

Describe briefly:

5. Does the property lie within an historic district, include an archaeological or rare species site, fall within a Department of Environmental Management designated scenic landscape, river, or within an Executive Office of Environmental Affairs designated Area of Critical Environmental Concern, a Zone II of a public water supply etc.? Please explain:

NO

6. Will public access be allowed? ☒ Yes ☐ No If yes, explain any limitations, type, etc.:

Prepared by: \_\_\_\_\_

Address: \_\_\_\_\_

(telephone number) \_\_\_\_\_

121 Huntington Avenue  
Boston, MA 02118-7513  
617 857-7913  
Fax: 617 857-7930

- NUMERIC ASSIGNMENT: ☒ Yes

1. TYPE OF RESTRICTION:

a. Conservative Only ☒ Other ☐

b. Adult Population ☐

Type: Agricultural, Historical, water shed

2. STATE FUNDS RECEIVED (and exp):

DCPA

Other

3. PUBLIC OFFICIALS:

State Representative(s)

State Senator(s)

County Board of Official(s)



The Division of Conservation Services, as part of its records retention program and in conjunction with the Massachusetts State Archivist, will retain the grantee's baseline data in the State Archives at no cost. Grantees need

APPENDIX B

**EXECUTIVE OFFICE OF ENVIRONMENTAL AFFAIRS**  
**DIVISION OF CONSERVATION SERVICES**  
 100 Cambridge St., 9th fl.  
 Boston, MA 02114-2150  
 (617) 626-1011

DATE: \_\_\_\_\_  
 MUNICIPALITY: \_\_\_\_\_  
 NUMERIC ASSIGNMENT: \_\_\_\_\_

**CONSERVATION RESTRICTION APPLICATION FORM**

Pursuant to the provisions of M.G.L. ch. 184. §32, the Secretary of Environmental Affairs is hereby requested to approve a conservation restriction as described below:

**A. GENERAL INFORMATION**

1. GRANTOR: Boxford Trails Assoc / Boxford Open Land Trust (BTA/BoxT)  
 (Name)  
7 Elm St P.O. Box 95 Boxford MA 01921  
 (Address)  
978-887-7031  
 (Telephone No.)  
JUDY GORE  
 (Contact Person)
2. GRANTEE: Town of Boxford - Conservation Commission  
 (Name)  
Boxford Town Hall 7A Spofford Rd Boxford MA 01921  
 (Address)  
978-887-6000  
 (Telephone No.)  
ROSS POVENMIRE  
 (Contact Person)
3. TYPE OF RESTRICTION:
  - a. Conservation Only: ☒
  - b. Joint Restriction: ☐
 Type: \_\_\_\_\_  
 (agricultural, historical, watershed)
4. STATE FUNDS INVOLVED yes ☐ no ☒
  - ☐ CPA
  - ☐ Grant (type)
  - ☐ Other
5. PUBLIC OFFICIALS:
 

State Representative(s) \_\_\_\_\_

State Senator(s) \_\_\_\_\_

Other involved Official(s) \_\_\_\_\_

**NOTES:**

If the grantee is a non-profit charitable corporation or trust, proof must be provided that it is a qualified charitable organization in accordance with M.G.L. c.180 §4(a) or (l) and the I.R.S. Code Section 501(c) (3). The Division also reserves the right to review the organization's by-laws and list of officers if warranted.

Regardless of whether the grantee is a qualified private non-profit organization or a city or town or commission, authority, or other instrumentality thereof, the local conservation commission must define the reasons for preserving the property and certify that the restriction is in the public interest (please refer to page 7).

A conservation restriction is a voluntary limitation on the use of land designed to preserve it from adverse future change. But



it should be distinguished at the outset from an agricultural preservation restriction which is approved by the Commissioner of Food and Agriculture for the Commonwealth, 251 Causeway Street, Boston, MA 02114-2150, and from an historical preservation restriction, which is approved by the Massachusetts Historical Commission 80 Boylston Street, Rm. 310, Boston, MA 02116, and from a watershed preservation restriction which is approved by the Commissioner of the Department of Conservation and Recreation, 251 Causeway St., Boston, MA 02114-2150.

Is it possible for a restriction to fit into more than one category, requiring more than one approval. If a joint restriction, has the approval process been started with either the Commissioners of Food and Agriculture, DCR or the Massachusetts Historical Commission?

☐ Yes

☒ No

4. GRANTOR'S INTENT

a. Charitable contribution: ☐ Yes ☒ No

Do you intend to claim an IRS income tax deduction? ☐ Yes ☒ No

b. Required as part of municipal or state permitting process: ☐ Yes ☒ No

1. Is this restriction required by a M.G.L. C.40A §9 special permit? ☐ Yes ☒ No

(Please attach a copy of the permit(s) as an exhibit)

2. Is this restriction required by M.G.L. C.131, §40 Wetlands Order of Conditions? ☐ Yes ☒ No

(Please attach a copy of the Order of Conditions)

3. Other? ☐ Yes ☒ No (please explain)

c. Other: Please explain (for example, sale of a C.R. to a public agency):

d. Is this a perpetual restriction? ☒ Yes ☐ No

If less than permanent, for how many years: \_\_\_\_\_

**PUBLIC BENEFIT**

1. Is the restriction for the preservation of land areas for outdoor recreation by, or the education of, the general public? ☒ Yes ☐ No

2. Is the restriction for the protection of a relatively natural habitat of fish, wildlife, or plants, or similar ecosystems? ☒ Yes ☐ No

3. Is the restriction for the preservation of open space (including farmland and forest land) where such preservation is:

a. pursuant to a clearly delineated federal, state, local governmental policy, and will yield a significant public benefit? ☒ Yes ☐ No

b. for the scenic enjoyment of the general public and will yield a significant public benefit? ☒ Yes ☐ No

4. Is the property historically significant? One that meets National Register Criteria or is within a registered historic district or contributes to the integrity of an historic building or property? ☐ Yes ☒ No

5. Other public benefit? ☒ Yes ☐ No (if yes, please explain)

a connection between natural areas of Oxford State  
Forest, Town Pond & Fish Brook

**NOTES:**

The Secretary will find sufficient evidence of the "public interest," if the applicant can show that the restriction meets any of the tests for deductibility under the Internal Revenue Service Code Section 170(h) and the Regulations promulgated thereunder, or a private letter ruling by the Internal Revenue Service shall be deemed sufficient for establishing such deductibility, or the applicant makes an independent showing of eligibility for deductibility.

The letter ruling or documentation demonstrating eligibility for deductibility should be attached along with this application. Regardless of the intent of the grantor's gift, the Secretary's determination of public interest will be dependent upon how well the applicant demonstrates public interest; however, grantors should be advised that the Secretary reserves the right to

**C. SITE DATA**

**Location:**

1. Municipality Boxford Street Location Townsend Farm Rd Parcel A
2. Grantor's Registry of Deeds Bk. # 22544 Page # 581
3. Assessors Map # 32-4 Lot # 26
4. New Site: ☒ Addition to existing restricted area: \_\_\_\_\_ (please specify)

Zoning: Commercial ☐ Industrial ☐ Residential ☒ (check all that apply)

Title: Does application have clear title? ☒ Yes ☐ No Assent of mortgagee(s) is required.  
If no, please explain:

Encumbrances: Is the property encumbered by any easement(s)? ☒ Yes ☐ No  
Please explain:

Drainage easement - 2 small sections between Lot 26 & Parcel A and Lot 12 & Parcel A

**Geographic Information:**

1. Total acres covered by restriction: 11.77
- A) Total Unrestricted Acres: 0
2. Cover: acres in
 

|                      |             |                                |          |
|----------------------|-------------|--------------------------------|----------|
| A. Upland Forest     | <u>4.77</u> | B. Open (field, pasture, etc.) | <u>2</u> |
| C. Vegetated Wetland | <u>4</u>    | D. Water                       | <u>1</u> |
3. Topography: acres in
 

|            |              |              |       |
|------------|--------------|--------------|-------|
| A. Flat    | _____        | B. Hilly     | _____ |
| C. Rolling | <u>11.77</u> | D. Mountains | _____ |
4. Water front: feet on
 

|           |             |          |       |
|-----------|-------------|----------|-------|
| A. Ocean  | _____       | B. River | _____ |
| C. Stream | <u>500'</u> | D. Lake  | _____ |

Please identify waterbody no name

**General information:**

1. Are there nay improvements existing on the property, or to be permitted after execution of the C.R.? ☐ Yes ☒ No If yes, please describe in detail:

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2. Is the property currently under any of the preferential real estate tax assessment programs?

978-887-7031  
(telephone number)

☐ Yes ☒ No If yes, which one: c.61 ☐ c.61A ☐ c.61B ☐

NOTE:

If the restriction lies in more than one community, the Site Data form must be completed for that portion of the restriction within each community.

3. If the property is under agricultural use, is the soil considered prime or of statewide agricultural significance?

☐ Yes ☒ No (If yes, USDA Soil Conservation Service data must be provided)

4. Is the property adjacent to any public or quasi-public land or buildings? ☒ Yes ☐ No

Describe briefly:

Boxford State Forest + Boxford Wildlife Sanctuary

5. Does the property lie within an historic district, include an archaeological or rare species site, fall within a Department of Environmental Management designated scenic landscape, river, or within an Executive Office of Environmental Affairs designated Area of Critical Environmental Concern, a Zone II of a public water supply etc.? Please explain:

NO

6. Will public access be allowed? ☒ Yes ☐ No If yes, explain any limitations, type, etc.:

no motorized vehicles, camping, hunting or trapping  
used only during daylight hours

Prepared by:

Judy Gore

Address:

BTA/BOLE

Box 95 Boxford MA 01921

978-887-7031

(telephone number)

## ATTACHMENTS:

- a. Conservation Restriction (required) ☒ Yes ☐ No
- b. USGS Topographic map with area identified thereon (required) ☒ Yes ☐ No
- c. Photographs (required); aerial (if available) ☒ Yes ☐ No
- d. Applicable federal, state or local plans, programs (excerpts therefrom)  
Or zoning ordinances, if appropriate *assess no map* ☒ Yes ☐ No
- e. Survey, plotmap, or sketch plan (required) ☒ Yes ☐ No
- f. Special reports, studies, (if available) ☐ Yes ☒ No
- g. Natural resource inventory, (if available) ☐ Yes ☒ No
- h. Wetlands Order of Conditions C.131.540, (if applicable) ☒ Yes ☐ No
- i. C. 40A, §9 Special Permit, (if applicable) ☐ Yes ☒ No
- j. I.R.S. letter ruling, (if applicable) ☒ Yes ☐ No
- k. Charitable status documentation, (if applicable) ☒ Yes ☐ No
- l. Assent of mortgagee(s) (if applicable) ☐ Yes ☒ No
- m. USDA Soil Data, (if applicable) ☐ Yes ☒ No
- n. Other (please specify) ☐ Yes ☒ No

## NOTES:

The conservation restriction must be prepared in a form suitable for recording and be approved and signed by the grantor, grantee, and municipal official(s). The applicant may wish to submit a draft of the conservation restriction document for a determination as to whether it is acceptable for approval by the Secretary. This procedure is recommended in situations in which the gift is complex or the applicant needs guidance in drafting an acceptable document. Regardless of whether the applicant files a draft or executed conservation restriction, all required attachments must be submitted for review.

The Division of Conservation Services, as part of its records retention program and in conjunction with the Massachusetts State Archivist, will retain the grantee's baseline data in the State Archives at no cost. Grantees need



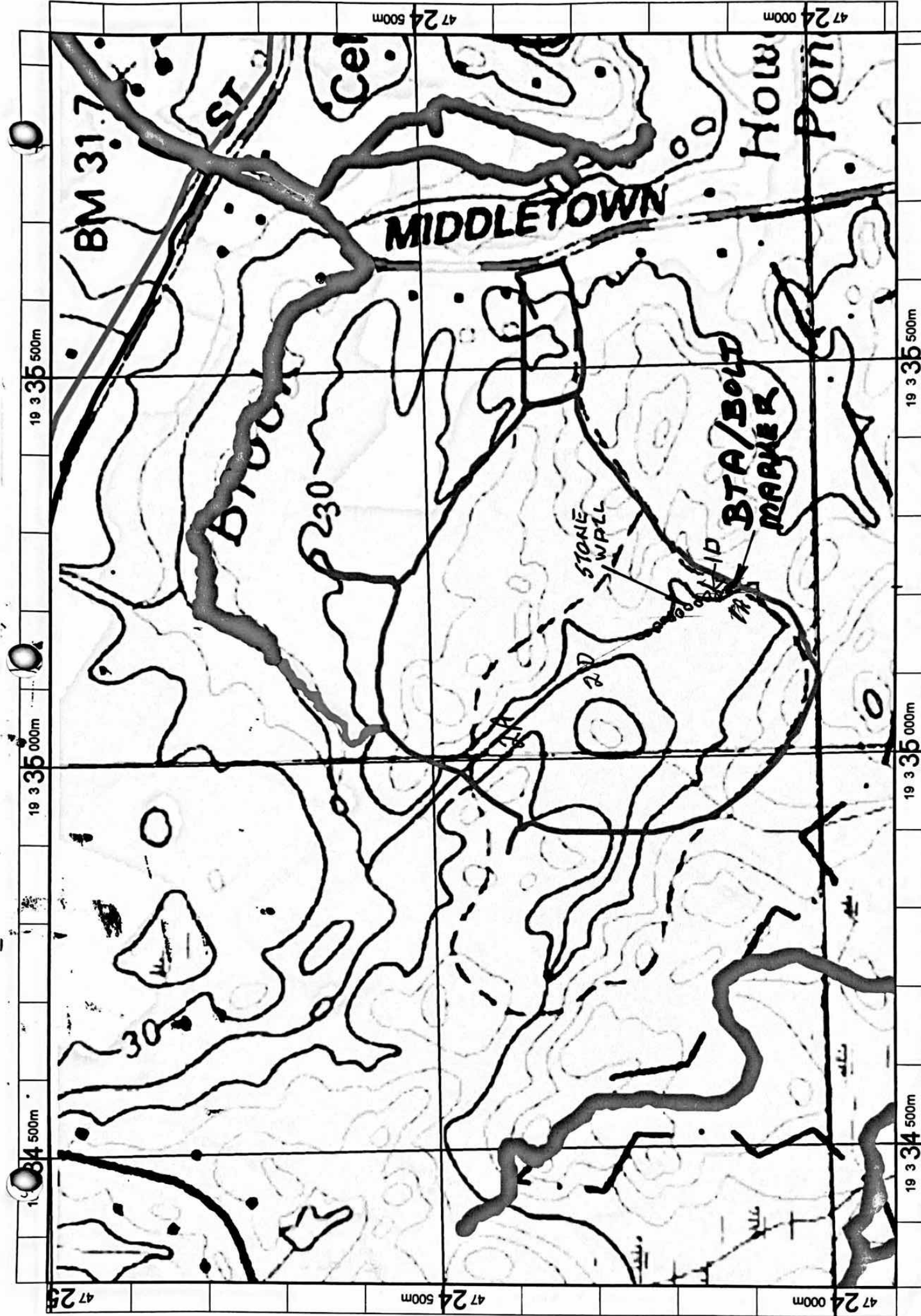
own copy

Judy,

I looked over the draft of the Townend Farm CR. The following are my thoughts/suggestions:

1. I agree that paragraph (g) under "Prohibited Activities" is very restrictive as currently worded. If other passive recreational activities are to be permitted, these activities should be specified.
2. Clearly identifying under "Reserved Activities" which activities are to be permitted is particularly important in this CR, because this CR does not contain the standard language setting forth that "all acts not prohibited in paragraph 1 are permissible." This language having been omitted, the status of activities that are not expressly prohibited, but not expressly reserved, is unclear. It is important to BTA/BOLT that the CR identify as unambiguously as possible what activities are permitted, so it is clear when it needs to take steps to enforce. Given that walking and perhaps other forms of passive recreation will be permitted, these activities should be specifically set forth under "Reserved Activities." Likewise, assuming the town does have an easement for maintenance and use of the firepond as we suspect it does, the CR should specify under "Reserved Rights" that "Activities necessary for the maintenance and use of the firepond" are reserved. Serious thought should be given to make sure that there are not any other activities that everyone agrees should be permitted. If there are such other activities, they should be identified under "Reserved Activities."
3. My draft does not contain the signature pages. Since a corporation owns this parcel, we need to confirm that the appropriate individual/individuals ultimately execute the CR (usually president and treasurer).
4. I remain somewhat concerned about the firepond, and would suggest not finalizing the CR until we understand the status of this pond. Although it probably will not impact the language of the CR, we should confirm that nothing in the CR is inconsistent with the town's or association's rights/obligations with respect to the firepond.

Angela



Name: LAWRENCE

Date: 2/23/2007

Scale: 1 inch equals 500 feet

Location: 19 0335126 E 4724445 N NAD 27

Caption: Townsend Farm, Parcel "A"

11:25; 1:1; 400%

ALP 2/23/07

**LEGEND**

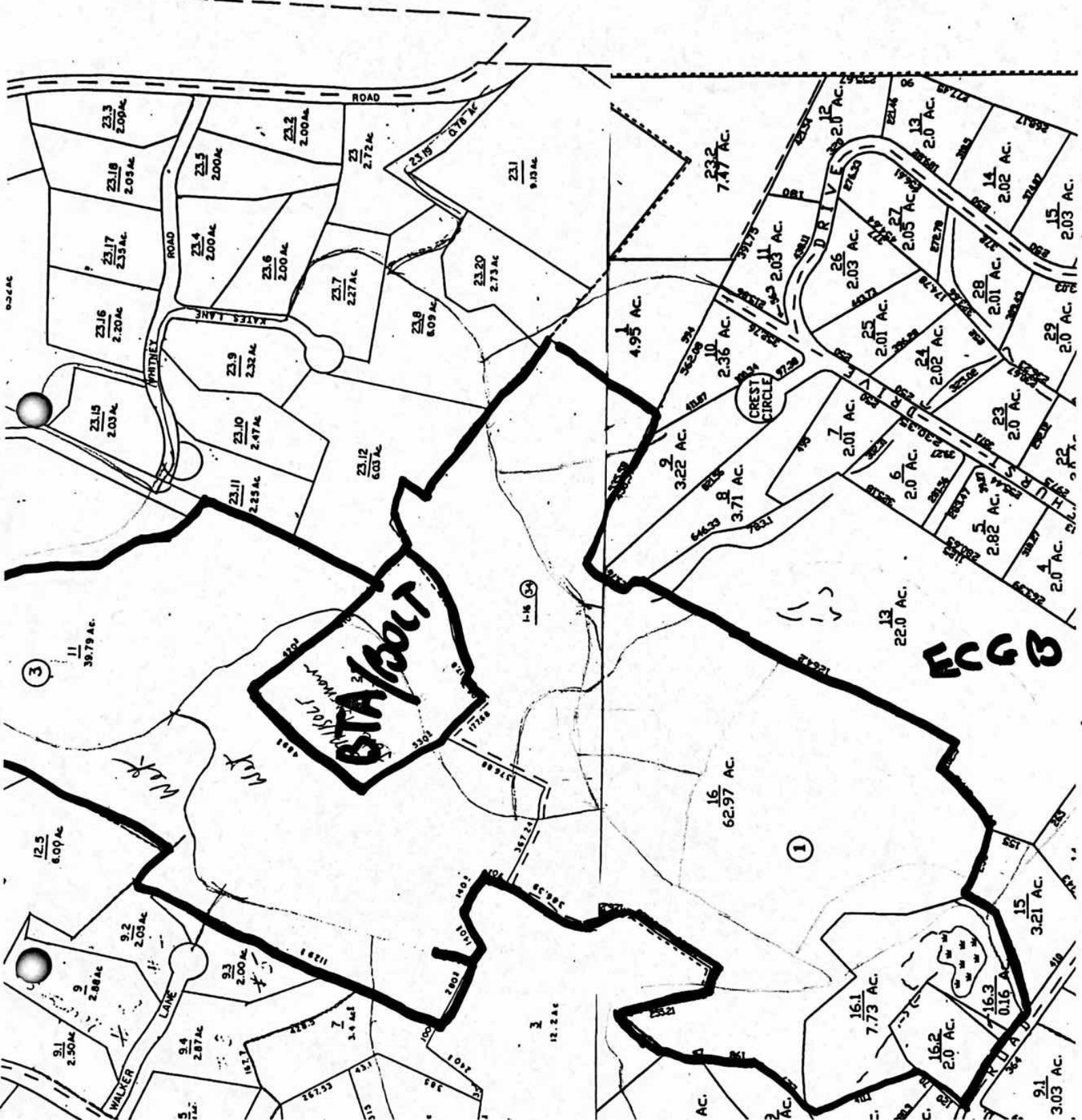
|                     |           |
|---------------------|-----------|
| TAX MAP BLOCK LIMIT | —         |
| TAX MAP BLOCK NO.   | —         |
| PARCEL NO.          | —         |
| TOWN LINE           | —         |
| SCHOOL              | —         |
| POND                | —         |
| CHURCH              | —         |
| CEMETERY            | —         |
| CREEK               | —         |
| TRANSMISSION LINE   | —         |
| FENCE               | —         |
| SCALE               | 1" = 200' |
| DATE OF PHOTOGRAPHY | MAY, 1971 |
| DATE REVISED        | NOV. 1971 |

STEWART MAPPING SERVICE  
PRINCETON, NEW JERSEY  
FOR TAX PURPOSES ONLY

TOWN OF BOXFORD  
BOXFORD, MA

34-1-59  
34-1-58  
34-1-72  
34-1-173

28 29 30  
32 33 34





DEED OF EASEMENT

PETER S. CONFALONE and DOUGLAS R. CONN, as they are Trustees of the Middleton Road Boxford Realty Trust under written Declaration of Trust dated July 2, 1985, and recorded with the Essex South District Registry of Deeds, Book 7817, Page 524, of North Reading, Massachusetts, for nominal consideration of One Dollar (\$1.00) and other valuable consideration, the receipt of which is hereby acknowledged, grants to the Inhabitants of the Town of Boxford, with Quitclaim Covenants the following easements and license over a portion of the land situated in Boxford, Essex County, Commonwealth of Massachusetts and shown on a Subdivision Plan entitled "Definitive Subdivision Plan of Townsend Farms in Boxford, Massachusetts," Owner and Applicant Middleton Road Boxford Realty Trust, Engineer Hancock Survey Associates, Scale 1" = 200', said plan dated December 2, 1985 consisting of 30 sheets and said plan recorded with the Essex South District Registry of Deeds, Plan Book 214, Page 79.

RECEIVED FOR RECORD  
ENTERED WITH ESSEX SOUTH  
DISTRICT REGISTRY OF DEEDS  
SALEM, MASS. FEE

NOV 20 1986

11 O'CLOCK

BOOK

PAGE

1. A 20' wide Bridle Trail Easement (non-motorized) across a portion of Lot 25 shown on said Subdivision Plan.

2. A 30' wide Bridle Trail Easement (non-motorized) across a portion of Lot 23 shown on said Subdivision Plan.

3. A triangular Bridle Path Easement (non motorized) having a hypotenuse of 77.62 feet across a portion of Lot 18 shown on said Subdivision Plan.

REGISTER OF DEEDS

The aforesaid easements are for the purpose of access by foot or by horseback to the Grantees subject to the condition that no motorized vehicles shall be permitted to use such easement and further subject to such other conditions that may be imposed upon such easements by the Grantees acting by and through the Boxford Board of Selectmen.

REGNANTE, REGNANTE  
& STERIO

ATTORNEYS AT LAW  
ESSEXBANK BUILDING

ON EX CENTER DRIVE  
PL 00V, MASS. 01960

TEL (617) 532-3060



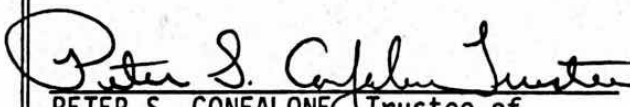
4. A 10' wide Non-Motorized Bridle Path License across a portion of Parcel A and Lots 31 and 6 shown on the aforesaid Subdivision Plan.

Such Bridle Path License is for the purpose of providing access by foot or by horseback to the Grantees subject to the condition that no motorized vehicles shall be permitted to use such license and further subject to such other conditions that may be imposed upon such license by the Grantees acting by and through the Boxford Board of Selectmen. The aforesaid license shall be applicable for a period of one (1) year from the date hereof and renewable thereafter, on an annual basis by the Grantors' designee, the Townsend Farms Green Belt Association, Inc., a Massachusetts corporation duly organized for the purpose of holding title to Parcel "A" shown on said Plan under certain conditions set forth in a Covenant given by the Grantors to the Town of Boxford dated November 19, 1986 and recorded with Essex South District Registry of Deeds, herewith.

Grantors agree to do all necessary work to cause the aforesaid areas to be usable and passable for the purposes stated herein.

The grantors warrant that the aforesaid easements are free and clear of all liens or encumbrances and that the grantors have good title to convey the same.

Executed as a sealed instrument this 19th day of November, 1986.

  
PETER S. CONFALONE, Trustee of  
Middleton Road Boxford Realty Trust

  
DOUGLAS R. CONN, Trustee of  
Middleton Road Boxford Realty Trust

COMMONWEALTH OF MASSACHUSETTS

ESSEX, SS.

November 19, 1986

Then personally appeared the above named PETER S. CONFALONE and DOUGLAS R. CONN, Trustees aforesaid and acknowledged the foregoing instrument to be their free act and deed, before me



THEODORE C. REGNANTE, Notary Public

My commission expires: December 29, 1989



*The Commonwealth of Massachusetts*  
*Executive Office of Energy and Environmental Affairs*  
100 Cambridge Street, Suite 900  
Boston, MA 02114

Deval L. Patrick  
GOVERNOR

Timothy P. Murray  
LIEUTENANT GOVERNOR

Ian A. Bowles  
SECRETARY

Tel: (617) 626-1000  
Fax: (617) 626-1181  
<http://www.mass.gov/envir>

Date:

8/23/07

To:

Judy Gore  
978-887-7031

FAX#:

FROM:

Jennifer Soper, Regional Planner

RE:

Box 612

Conservation Restriction #

32

I am faxing my comments on the Conservation Restriction you submitted for your review, as well as the checklist I use in reviewing these. If you have difficulty understanding what I have written, the checklist may be of some assistance in determining what needs to be changed, or what wording is missing. If my notes are still unclear, please don't hesitate to call me at (617) 223-1745.

The Conservation Restriction has been reviewed by our legal department as well as by me, so once the changes have been made you may obtain your local signatures and send it in to me for final review and approval. However, if there is a comment you are unsure about or if I have a question mark next to anything, it is something we need to discuss. This way I can get clarification or perhaps help with finding suitable language to meet our requirements on unusual provisions.

I look forward to finalizing this and please remember to refer to our internal CR number in all correspondence or inquiries. Thanks!

Jennifer Jillson Soper, Regional Planner  
Division of Conservation Services

e-mail from  
Niche Soper  
617-626-1014

Town Buxford  
CR# 32 Acres 11.77

Grantor: Buxford Trails Assoc & Buxford Land Trust  
Grantee: Town of Buxford Conscom

8/23/07

| Conservation Restriction Checklist                                                                                                                                                                                  |  | Jennifer                            | Legal | Comments |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|-------------------------------------|-------|----------|
| Grantor defined, including successors and assigns                                                                                                                                                                   |  | <input checked="" type="checkbox"/> |       |          |
| Grantee inc permitted successors & assigns, sec. 32 eligible                                                                                                                                                        |  | <input checked="" type="checkbox"/> |       |          |
| If town, acting by & thru its ConsCom by authority of MGL c. 40 s. 8C                                                                                                                                               |  | <input checked="" type="checkbox"/> |       |          |
| Grantor's title (e.g. book, page, deed) in first paragraph                                                                                                                                                          |  | <input checked="" type="checkbox"/> |       |          |
| Granted in perpetuity & for conservation purposes                                                                                                                                                                   |  | <input checked="" type="checkbox"/> |       |          |
| Consideration stated?                                                                                                                                                                                               |  | <input checked="" type="checkbox"/> |       |          |
| Charitable?                                                                                                                                                                                                         |  | <input checked="" type="checkbox"/> |       |          |
| Conservation Commission other certification CR is in public interest                                                                                                                                                |  | <input checked="" type="checkbox"/> |       |          |
| Reference to c. 184 Sections 31-33                                                                                                                                                                                  |  | <input checked="" type="checkbox"/> |       |          |
| Extracted CR? - required by permit? If subdivision, most recent plan                                                                                                                                                |  | <input checked="" type="checkbox"/> |       |          |
| Grant funded? SH, USH, LWCF, Drinking Water, Partnership Program                                                                                                                                                    |  | <input checked="" type="checkbox"/> |       |          |
| "Premises" defined (include legal description in CR of Exhibit A)                                                                                                                                                   |  | <input checked="" type="checkbox"/> |       |          |
| Location, # of acres, labeled CR? approp exhibits & plans attached                                                                                                                                                  |  | <input checked="" type="checkbox"/> |       |          |
| CR entire parcel? If no, is restricted land clear (state portion), monumentation & signage if not entire lot                                                                                                        |  | <input checked="" type="checkbox"/> |       |          |
| Building envelopes well located, not oversized (i.e., 7 A lot w/ 5 A CR)                                                                                                                                            |  | <input checked="" type="checkbox"/> |       |          |
| Public purposes/benefit? i.e. public access, natural resource prot., water quality, drinking water (wells), wetlands, flood control                                                                                 |  | <input checked="" type="checkbox"/> |       |          |
| Field Inspection Report - esp. if extracted CR                                                                                                                                                                      |  | <input checked="" type="checkbox"/> |       |          |
| Prohibited Uses, Grantor will neither perform nor allow others to perform subdiv. no portion to be used for bldg rect on this or any other parcel temp or perm. Bldgs. on, above, below, in part of official duties |  | <input checked="" type="checkbox"/> |       |          |
| Are permitted uses consistent with purposes?                                                                                                                                                                        |  | <input checked="" type="checkbox"/> |       |          |
| Public health, nuisance insect, plant control, non-native or invasive                                                                                                                                               |  | <input checked="" type="checkbox"/> |       |          |
| Legal Remedies of Grantee                                                                                                                                                                                           |  | <input checked="" type="checkbox"/> |       |          |
| Access - Grantee access required, public optional                                                                                                                                                                   |  | <input checked="" type="checkbox"/> |       |          |
| Extinguishment (if not required by permit/Permit? Y <u>N</u> )                                                                                                                                                      |  | <input checked="" type="checkbox"/> |       |          |
| Proportional value (improvements? Y <u>N</u> )                                                                                                                                                                      |  | <input checked="" type="checkbox"/> |       |          |
| Public Action (Eminent domain?)                                                                                                                                                                                     |  | <input checked="" type="checkbox"/> |       |          |
| Compensation funds to be used in trust for CR purposes                                                                                                                                                              |  | <input checked="" type="checkbox"/> |       |          |
| Assignability, Running of burden/benefit/execution of instruments                                                                                                                                                   |  | <input checked="" type="checkbox"/> |       |          |
| Section 32 "qualified organization"                                                                                                                                                                                 |  | <input checked="" type="checkbox"/> |       |          |
| Severability clause                                                                                                                                                                                                 |  | <input checked="" type="checkbox"/> |       |          |
| Non-Waiver clause                                                                                                                                                                                                   |  | <input checked="" type="checkbox"/> |       |          |
| Subsequent transfers - failure to notify shall not impair CR                                                                                                                                                        |  | <input checked="" type="checkbox"/> |       |          |
| Acts beyond control: parties will cooperate in restoring if feasible                                                                                                                                                |  | <input checked="" type="checkbox"/> |       |          |
| Estoppel Certificates - part of Grantee if fails to obtain copy                                                                                                                                                     |  | <input checked="" type="checkbox"/> |       |          |
| Is there a mortgage? Subordination clause?                                                                                                                                                                          |  | <input checked="" type="checkbox"/> |       |          |
| Effective Date (upon signature and recordation)                                                                                                                                                                     |  | <input checked="" type="checkbox"/> |       |          |
| This CR shall be recorded in a timely manner                                                                                                                                                                        |  | <input checked="" type="checkbox"/> |       |          |
| Amendment (any amendment must be approved by the Secretary)                                                                                                                                                         |  | <input checked="" type="checkbox"/> |       |          |
| Check signatures: Grantor (notary), Grantee (notary), Selection, Secretary                                                                                                                                          |  | <input checked="" type="checkbox"/> |       |          |
| Approval does not represent the existence, nonexistence of public rights                                                                                                                                            |  | <input checked="" type="checkbox"/> |       |          |

new name: Ecology & Environmental Affairs

8/23/07



CONSERVATION RESTRICTION

The undersigned, Boxford Trails Association/Boxford Open Land Trust, Inc. (BTA/BOLT), a Massachusetts nonprofit corporation incorporated under the laws of the Commonwealth of Massachusetts with an address of 7 Elm Street, P.O. Box 95, Boxford, Massachusetts for nominal consideration, hereby GRANTS, with QUITCLAIM COVENANTS, to the Town of Boxford, a Massachusetts municipal corporation acting by and through its Conservation Commission pursuant to Mass. Gen. L. ch. 40, § 8C, having its principal office at Boxford Town Hall, 7A Spofford Road, Boxford, Massachusetts 01921, its successors and permitted assigns, in perpetuity and exclusively for conservation purposes, a Conservation Restriction on a parcel of land located in Boxford, Essex County, Massachusetts *containing approximately 11.77 acres shown as Parcel "A" on a subdivision plan entitled "Definitive Subdivision Plan of Townsend Farms in Boxford, Massachusetts, owner and applicant Middleton Road Boxford Realty Trust, Engineer Hancock Survey Associates, Scale 1" = 200', dated December 2, 1985," (the "Plan") recorded in Essex South District Registry of Deeds Plan Book 214, Plan 79 and incorporated herein by reference (the "Property").* Said BTA/BOLT and its successors, in title to the Property are hereinafter called the "Grantor" and the Boxford Conservation Commission and its successors and permitted assigns are hereinafter called the "Grantee". For Grantor's title see deed recorded with Essex South District Registry of Deeds at Book 22544, Page 581. *Exhibit A*

I. PURPOSES

This Conservation Restriction is defined in and authorized by Sections 31-33 of Chapter 184 of the Massachusetts General Laws and otherwise by law. Its purposes are to assure that the Property will be retained in its natural, scenic and undeveloped condition and to prevent any use of the Property that will significantly impair or interfere with the conservation values of the Property. *The protected conservation values and the public benefits resulting from the protection of the Property in the manner provided in this Conservation Restriction include the following, without limitation:*

1. Construction or placing of any building, structure, facility or improvement on, over or under the Property, including but not limited to tennis courts, landing strips or pads, mobile homes, swimming pools, septic systems, roads, signs, fences, billboards or other advertising display, utilities, conduits, poles, antennas, towers, monopoles, windmills, solar panels, docks, wharfs, or other temporary or permanent structures, facilities, or improvements of any kind on, over or under the ground unless otherwise permitted in Paragraph B.2 below;
2. Dumping or placing of soil, grass clippings, compost, yard debris or other substances on the ground as landfill, or dumping or placing of vehicle bodies or parts, junk, trash, refuse, solid or chemical waste or unsightly or offensive materials, or the installation of underground storage tanks;
3. Cutting, removal, harvesting or destruction of trees, grasses, shrubs or other vegetation unless otherwise permitted in Paragraph B below;
3. Mining, excavating, dredging or removal from the Property of loam, peat, sand, gravel, soil, rock or other mineral substances or natural deposits except as necessary for proper drainage or soil conservation and then only in a manner which does not impair the purposes of this Conservation Restriction after consultation with and approval by the Grantee;
4. Any commercial use or activity, unless the activity is otherwise permitted in Paragraph B below; any residential or industrial use or activity; and any municipal use not related to the purposes of this Conservation Restriction;
5. Use of motorized vehicles of any nature or kind, including but not limited to cars, trucks, motorcycles, all-terrain vehicles and snowmobiles, except such as may be reasonably required by police, firemen or other governmental agents in carrying out their lawful duties or for reasonable access by persons with disabilities, and except for cars, trucks and farm vehicles used for purposes permitted by this Conservation Restriction as provided in Paragraph B below;

D. Notice to and Approval by Grantee. Whenever notice to or approval by the Grantee is required under the provisions of Paragraphs A, B or C of Section II, or any other provision or condition herein, the Grantor shall notify the Grantee in writing not less than thirty (30) days prior to the date the Grantor intends to undertake the activity in question. The notice shall describe the nature, scope, design, location, timetable and any other material aspect of the proposed activity in sufficient detail to permit the Grantee to make an informed judgment as to its consistency with the purposes of this Conservation Restriction. Where the Grantee's approval is required by the terms of this Conservation Restriction, the Grantee shall grant or withhold its approval in writing within thirty (30) days of receipt of the Grantor's written request therefore. Grantee's approval may be withheld upon a determination by the Grantee at its sole discretion that the action as proposed would be inconsistent with the purposes of this Conservation Restriction. Failure by the Grantee to respond within that time period will be deemed an approval of the activity.

### III. ACCESS

A. Access by the Grantee. The Grantee through its duly designated officers, directors, members, employees, representatives or agents shall have the right to enter the Property following reasonable notice and at reasonable times and in a reasonable manner for the purpose of inspecting the Property and determining compliance with the terms of this Conservation Restriction.

B. Access by the Public. The Grantor recognizes that certain portions of the Property are presently used by the general public to pass and repass by foot, horseback, snowshoe and cross country ski for purposes of quiet outdoor recreational and educational activities. The Grantor and its successors and assigns shall permit the continuance of such activities provided (1) that any such activity shall be limited to daylight hours only (unless otherwise permitted by BTA/BOLT); (2) that no motor vehicles of any kind other than those for reasonable access by persons with disabilities shall be permitted; (3) that no camping, hunting, trapping or discharge of firearms shall be conducted; (4) that no dumping, waste disposal, or littering of any kind be allowed; and (5) that no activity of a commercial nature be allowed. The Grantor hereby reserves

the purpose of preserving and conserving natural resources, natural habitats, environmentally sensitive areas and for other charitable, scientific and educational purposes, that it has both the necessary funds and commitment to hold this Conservation Restriction exclusively for conservation purposes in perpetuity and to enforce its terms, and that it is a "Qualified Organization" as that term is defined in Section 170 (h) (3) of the Internal Revenue Code of 1986, as amended.

C. Required Notification of Transfers. The Grantor shall notify the Grantee in writing at least thirty (30) days before conveying the Property, or any part thereof or interest therein (including a leasehold interest or option). The Grantee shall notify the Grantor in writing at least thirty (30) days before it assigns this Conservation Restriction. Any failure by Grantor or Grantee to provide notification as provided for herein shall not invalidate or extinguish this Conservation Restriction or limit its enforceability in any way.

## VII. EXTINGUISHMENT

A. Termination or Extinguishment. This Conservation Restriction can only be terminated or extinguished, whether in whole or in part, by judicial proceedings in a court of competent jurisdiction, based on circumstances arising in the future that render the purposes of this Conservation Restriction impossible to accomplish, or by two-thirds vote of the General Court pursuant to statutory process.

B. Grantee's Receipt of Property Rights. The Grantor and Grantee agree that if this Conservation Restriction should ever be terminated or extinguished, the proceeds, if any, shall first be distributed to the Grantor, or their successors or assigns, for the purchase of other land in Boxford for similar conservation and recreational purposes as stated herein and Grantor shall convey to Grantee a conservation restriction on such land similar in form and purpose to the conservation values stated herein. If, within 30 days of such termination or extinguishment, no other similar land is available for purchase by Grantor, then the Grantee, on a subsequent sale, exchange or involuntary conversion of the Property, shall be entitled to a portion of the proceeds equal to such proportionate value described in Paragraph C below, subject however, to any applicable law which expressly provides for a different disposition of proceeds.



therein, by the Grantee, its successors and assigns and its duly designated officers, directors, members, employees or agents as holders of this Conservation Restriction.

C. Termination of Rights and Obligations. Notwithstanding anything to the contrary contained herein, the rights and obligations under this Conservation Restriction of any party holding any interest in the Property shall terminate upon transfer of that party's interest in the Property. Liability for acts or omissions occurring prior to any transfer and liability for any transfer in violation of this Conservation Restriction shall survive the transfer.

D. Prior Encumbrances. This Conservation Restriction shall be in addition to and not in substitution of any other restrictions or easements of record affecting the Property.

E. Pre-Existing Rights of the Public. The approval of this Conservation Restriction by any municipal or state authority is not to be construed as representing the existence or nonexistence of any pre-existing rights of the public, if any, in and to the Property. Any pre-existing rights of the public are not affected by the granting of this Conservation Restriction.

F. Execution of Instruments. The Grantee is authorized to record or file any notices or instruments appropriate to assuring the perpetual enforceability of this Conservation Restriction. The Grantor and its successors and assigns agree to execute any such instrument its review and approval.

G. Effective Date. The Grantor and the Grantee intend that the restrictions arising hereunder take effect when all the requisite signatures pursuant to Section 32 of Chapter 184 of the General Laws of Massachusetts have been obtained and this document has been recorded in the appropriate Essex County Registry of Deeds.

*Timothy Manner*

H. Controlling Law. The interpretation of this Conservation Restriction shall be governed by the laws of the Commonwealth of Massachusetts.

I. Liberal Construction; Severability. This Conservation Restriction shall be liberally construed in favor of the grant to effect its conservation purposes and the

## QUITCLAIM DEED

KNOW ALL MEN BY THESE PRESENTS that TOWNSEND FARMS GREENBELT ASSOCIATION, INC., a duly organized Massachusetts Corporation with a principal place of business at 51 Townsend Farm Road, in Boxford, Essex County, Massachusetts (the "Grantor"), for consideration of One (\$1.00) Dollar paid, grants to BTA/BOLT, Inc., a Massachusetts non-profit Corporation with a usual place of business at 7 Elm Street, Boxford, Essex County, Massachusetts, with QUITCLAIM COVENANTS, all its right, title and interest in and to the certain parcel of land situated in Boxford, Essex County, Massachusetts, shown as Parcel "A" on a subdivision plan entitled "Definitive Subdivision Plan of Townsend Farms in Boxford, Massachusetts, owner and applicant Middleton Road Boxford Realty Trust, Engineer Hancock Survey Associates, Scale 1" = 200', dated December 2, 1985," recorded in Essex South District Registry of Deeds Plan Book 214, Plan 79, subject to restrictions imposed by Town of Boxford Massachusetts Planning Board Supplementary Subdivision Covenant, dated November 19, 1986, recorded in said Registry as Instrument No. 186 of November 19, 1986.

Subject to and with the benefit of all easements, agreements, restrictions and encumbrances of record insofar as the same are in force and applicable.

For Grantor's title, see Deed of Douglas R. Conn and Peter S. Confalone, Trustees of the Middleton Road Boxford Realty Trust recorded with the Essex South District Registry of Deeds in Book 12503, Page 314. See also Confirmatory Deed of Douglas R. Conn and Peter S. Confalone, Trustees, dated April 19, 2002 and recorded prior hereto.